十九世纪早期孟加拉的强制劳动、种姓与自由愿望：从南亚重审反奴隶制辩论

Coerced Labor, Caste, and Aspirations for Liberty in Early Nineteenth-Century Bengal: Revisiting the Antislavery Debate from South Asia

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关键词：奴隶制；反奴隶制；南亚；资本主义；种姓；反革命；大英帝国；孟加拉；农业劳动；殖民法律

摘要 / Abstract

[p. 1] 本文从南亚的视角，重新审视资本主义与废奴之间关系的争论。文章认为，将反奴隶制辩论与大量有关种姓的文献置于对话之中，可以打开新的比较可能性。近代早期印度洋世界中商业性奴隶制的存在，如今已得到充分证实；但奴隶制的全球史，很少激发人们撰写反奴隶制的全球史。对南亚废奴的主流解释，仍聚焦于殖民治理因具体情势而产生的需求。通过分析十九世纪二三十年代印度东部孟加拉省围绕奴隶制地位发生的法律冲突，我认为，在一个由种姓与农业奴隶制塑造的情境中，这种研究路径遮蔽了废奴的伦理—政治意义。然而，废奴的解放潜能，一方面受到致力于榨取税收和维持社会秩序的殖民国家的削弱，另一方面也受到全球资本主义反革命背景的压制。本文把殖民档案置于这一更广阔的历史交汇之中，说明废奴的可能性与局限，如何共同产生于自由主义和全球资本主义的矛盾。由此，本文将南亚个案与更广泛的革命、反革命历史联系起来，展开对话。

[p. 1] This article revisits the debate on the relationship between capitalism and abolition from the perspective of South Asia. It argues that bringing the antislavery debate into conversation with the extensive literature on caste opens up new comparative possibilities. Commercial slavery in the early modern Indian Ocean world is now well established, but global histories of slavery have rarely inspired global histories of antislavery. The dominant interpretation of abolition in South Asia remains focused on the contingent requirements of colonial governance. Through an analysis of legal conflicts over the status of slavery in the eastern Indian province of Bengal in the 1820s and 1830s, I argue that this approach obscures the ethical-political significance of abolition in a context shaped by caste and agrarian slavery. The emancipatory potential of abolition, however, was undermined by a colonial state committed to revenue extraction and social order, as well as by the global capitalist context of counter-revolution. By situating the colonial archive within this wider historical conjuncture, the essay shows how both the possibilities and limits of abolition emerged from the contradictions of liberalism and global capitalism. It thereby puts the South Asian case in conversation with broader histories of revolution and counter-revolution.

导论 / Introduction

[p. 1] 在可追溯至埃里克·威廉斯的大量资本主义与废奴研究中，南亚社会史明显缺席。[1]这一点部分可以解释为，在二十世纪的大部分时间里，奴隶制与资本主义研究一直是一个以大西洋为中心的领域。然而，近几十年来，印度洋世界中的商业性奴隶制已成为重要的研究领域。[2]资本主义新史与“种族资本主义”研究，进一步拓宽了我们的空间视野，并引发关于现代资本主义之全球、帝国与种族维度的辩论。[3]

[p. 1] In the vast literature on capitalism and abolition stretching back to Eric Williams, South Asian social history is conspicuously absent.[1] This can partly be explained by the fact that the study of slavery and capitalism was an Atlantic-centered field for much of the twentieth century. In recent decades, however, commercial slavery in the Indian Ocean world has become a prominent field of inquiry.[2] New Histories of Capitalism and studies of “racial capitalism” have contributed further to a widening of our

1. Eric Williams, *Capitalism and Slavery*〔*题名译释：资本主义*

spatial visions and provoked debates about the global, imperial, and racial dimensions of modern capitalism.[3]

1. Eric Williams, *Capitalism and Slavery* (University of North Carolina Press, 1944); David Brion Davis, *The Problem of Slavery in Western Culture* (Cornell University Press, 1966); David Brion Davis, *The Problem of Slavery in the Age of Revolution, 1770–1823* (Cornell University Press, 1975); Thomas L. Haskell, "Capitalism and the Origins of the Humanitarian Sensibility, Part I," *The American Historical Review* 90, 2 (1985): 339–61; Thomas L. Haskell, "Capitalism and the Origins of the Humanitarian Sensibility, Part II," *The American Historical Review* 90, 3 (1985): 547–66; Thomas Bender, ed., *The Antislavery Debate: Capitalism and Abolitionism as a Problem in Historical Interpretation* (University of California Press, 1992).

2. Kate Ekama, Lisa Hellman, and Matthias van Rossum, eds., *Slavery and Bondage in Asia, 1550–1850: Towards a Global History of Coerced Labor* (De Gruyter, 2022); Alessandro Stanziani, *Bondage: Labor and Rights in Eurasia from the Sixteenth to the Early Twentieth Centuries* (Berghahn Books, 2014); Titas Chakraborty and Matthias van Rossum, "Slave Trade and Slavery in Asia—New Perspectives," *Journal of Social History* 54, 1 (2020): 1–14; Matthias van Rossum, "Slavery and its Transformations: Prolegomena for a Global and Comparative Research Agenda," *Comparative Studies in Society and History* 63, 3 (2021): 566–98.

3. Sven Beckert, *Empire of Cotton: A Global History* (Knopf, 2014); Edward E. Baptist, *The Half Has Never Been Told: Slavery and the Making of American Capitalism* (Basic Books, 2014); Sven Beckert and Seth Rockman, eds., *Slavery's Capitalism: A New History of American Economic Development* (University of Pennsylvania Press, 2016); Destin Jenkins and Justin Leroy, eds., *Histories of Racial Capitalism* (Columbia University Press, 2021); Diana Paton, "Gender History, Global History, and Atlantic Slavery: On Racial Capitalism and Social Reproduction," *The American Historical Review* 127, 2 (2022): 726–54.

[p. 2] Nevertheless, the new literature on global histories of slavery has not inspired attempts to write global histories of antislavery. Some scholars have called for a better understanding of the slow "drift in community values" that drives authorities to redefine what constitutes coercion, and the need for a global approach to antislavery has occasionally been acknowledged.[4] Yet, the default interpretation of antislavery in South Asia is one that reads it entirely as a function of the contingent requirements of colonial governance.[5] Such an approach ignores the possibility that abolition in colonial contexts, despite its limits, had a genuine ethical purchase on the lives of those it affected. Agrarian social relations in the subcontinent were grounded in practices of caste, which involved differential access to markets, land, and water, the control of (bonded)

4. David Eltis, Stanley L. Engerman, Seymour Drescher, and David Richardson, “Introduction〔题名译释：导论〕,” in David Eltis *et al.*, eds., *The Cambridge World History of Slavery, Volume 4, AD 1804–AD 2016〔题名译释：剑桥世界奴隶制史，第 4 卷，公元 1804—2016 年〕* (Cambridge University Press, 2017), 3–19; Seymour Drescher, “Approaches to Global Antislavery〔题名译释：全球反奴隶制研究路径〕,” in David Stefan Doddington and Enrico Del Lago, eds., *Writing the History of Slavery〔题名译释：书写奴隶制的历史〕* (Bloomsbury Academic, 2022), 113–32; William Mulligan, “Injection: The Global Spread of Abolitionism〔题名译释：注入：废奴主义的全球传播〕,” in Damian A. Pargas and Juliane Schiel, eds., *The Palgrave Handbook of Global Slavery Throughout History〔题名译释：帕尔格雷夫历代全球奴隶制手册〕* (Palgrave Macmillan, 2023), 553–64.

5. Andrea Major, *Slavery, Abolitionism, and Empire in India, 1772–1843〔题名译释：印度的奴隶制、废奴主义与帝国，1772—1843〕* (Liverpool University Press, 2012); Andrea Major, *Reimagining Empire in India: George Thompson, Anti-Slavery Activism, and the Global Networks of British Colonial Reform, 1831–1858〔题名译释：重新想象印度的帝国：乔治·汤普森、反奴隶制行动与英国殖民改革的全球网络，1831—1858〕* (Bloomsbury, 2025); Indrani Chatterjee, “Abolition by Denial: The South Asian Example〔题名译释：通过否认实现废奴：南亚的例子〕,” in Gwyn Campbell, ed., *Abolition and its Aftermath in Indian Ocean, Africa, and Asia〔题名译释：印度洋、非洲与亚洲的废奴及其后果〕* (Routledge, 2005), 137–153; Indrani Chatterjee, “British Abolitionism from the Vantage of Pre-Colonial South Asian Regimes〔题名译释：从前殖民南亚政体的视角看英国废奴主义〕,” in David Eltis *et al*., eds., *The Cambridge World History of Slavery, Volume 4, AD 1804–AD 2016〔题名译释：剑桥世界奴隶制史，第 4 卷，公元 1804—2016 年〕* (Cambridge University Press, 2017), 441–65.

6. Ranajit Guha, “Chandra’s Death〔题名译释：钱德拉之死〕,” in Ranajit Guha, ed., *Subaltern Studies V〔题名译释：底层研究，第 5 卷〕* (Oxford University Press, 1987), 135–165, 155.

7. 同上, 144.

[p. 3] 因此，*彻底*抽空印度废奴的意识形态内容，会造成一个重大的史学盲点。[8]它使人们看不见南亚更长期的社会史，也看不见在种姓与农业奴隶制塑造的情境中，废奴所具有的伦理—政治意义。托马斯·霍尔特敏锐地区分了两者：一是无法还原为阶级利益的、作为社会意识形态的废奴主义；二是精英—帝国政策产生的废奴“结果”。以下各节将以此为基础，逐步展开我的核心论点及其比较意义。[9]下一节把本文置于资本主义与废奴的更广泛史学之中，并说明为何必须把南亚种姓与奴隶制的特殊性纳入这一研究。第三节呈现证据：十九世纪二三十年代印度东部孟加拉省的一系列法律冲突，以及被指称为“奴隶”者的证词。我将在第四节论证，这些争议表明，奴隶制既不是“亲属关系”的问题，也并不“温和”、和谐。[10]农业奴隶制既存在于莫卧儿时期的南亚，也存在于英国殖民统治早期（1765—1858）；十九世纪初，围绕奴隶制法律地位还存在政治斗争。这种对自由的渴望，不能仅以殖民国家的建构来解释。抗拒行为包括声称自己是“雇佣”工人而非“奴隶”，以及坚持对宅基地享有财产权；这些行为挑战了种姓的实践基础。尽管这些行动没有在文本中明确表述为反种姓，借助一个更大的推论结构来解读被指称为奴隶者的行动，仍能帮助我们更好地理解：自十九世纪六十年代起，南亚如何出

4. David Eltis, Stanley L. Engerman, Seymour Drescher, and David Richardson, “Introduction,” in David Eltis *et al.*, eds., *The Cambridge World History of Slavery, Volume 4, AD 1804–AD 2016* (Cambridge University Press, 2017), 3–19; Seymour Drescher, “Approaches to Global Antislavery,” in David Stefan Doddington and Enrico Del Lago, eds., *Writing the History of Slavery* (Bloomsbury Academic, 2022), 113–32; William Mulligan, “Injection: The Global Spread of Abolitionism,” in Damian A. Pargas and Juliane Schiel, eds., *The Palgrave Handbook of Global Slavery Throughout History* (Palgrave Macmillan, 2023), 553–64.

5. Andrea Major, *Slavery, Abolitionism, and Empire in India, 1772–1843* (Liverpool University Press, 2012); Andrea Major, *Reimagining Empire in India: George Thompson, Anti-Slavery Activism, and the Global Networks of British Colonial Reform, 1831–1858* (Bloomsbury, 2025); Indrani Chatterjee, “Abolition by Denial: The South Asian Example,” in Gwyn Campbell, ed., *Abolition and its Aftermath in Indian Ocean, Africa, and Asia* (Routledge, 2005), 137–153; Indrani Chatterjee, “British Abolitionism from the Vantage of Pre-Colonial South Asian Regimes,” in David Eltis *et al*., eds., *The Cambridge World History of Slavery, Volume 4, AD 1804–AD 2016* (Cambridge University Press, 2017), 441–65.

6. Ranajit Guha, “Chandra’s Death,” in Ranajit Guha, ed., *Subaltern Studies V* (Oxford University Press, 1987), 135–165, 155.

7. Ibid., 144.

[p. 3] Hence, evacuating abolition in India of its ideological content *in toto* produces a major historiographical blind spot.[8] It occludes from vision longer-running South Asian social histories and the ethical-political valence of abolition in a context shaped by caste and agrarian slavery. Building on Thomas Holt’s insightful distinction between abolitionism as a social ideology irreducible to class interest, and abolitionist “outcomes” produced by elite-imperial policy, the following sections gradually unpack my key argument and its comparative implications.[9] The next section situates the essay within the broader historiography of capitalism and abolition, and motivates the need to incorporate the specificities of caste and slavery in South Asia into this literature. Section III presents the evidence: a series of legal conflicts and the testimonies of alleged “slaves” in the eastern Indian province of Bengal in the 1820s and 1830s. These disputes show, I argue in Section IV, that slavery was neither a matter of “kinship” nor “gentle” and harmonious.[10] Agrarian slavery existed in both Mughal South Asia and during the early British colonial era (1765–1858), and there were political struggles over the legal status of slavery in the early nineteenth century. Such aspirations for liberty cannot be explained

labor, and the regulation of sexuality. As a modality of power, caste was “sited at a depth within the indigenous society, well beyond the reach of the disciplinary arm of the colonial state.”[6] This dimension has often been concealed, as this essay will also show, through a blending of “indigenous feudal ideology…with colonialist anthropology.”[7]

现反种姓的、并最终形成达利特的政治主体性。[11]

8. 我用“意识形态”一词，指共同观念、预设和情感的一种特定且系统性的结合，它在我们的客观经验与我们对这一经验的主观解释之间发挥中介作用。除下文引用的托马斯•霍尔特的著作外，我认为芭芭拉•菲尔兹对种族主义意识形态的历史研究方法尤其有用。参见 Barbara Fields,“Slavery, Race, and Ideology in the United States of America〔题名译释：美利坚合众国的奴隶制、种族与意识形态〕,”*New Left Review* I/181 (1990): 95–118.

9. Thomas C. Holt, *The Problem of Freedom: Race, Labor, and Politics in Jamaica and Britain, 1832–1938〔题名译释：自由的问题：牙买加与英国的种族、劳动及政治，1832—1938〕* (Johns Hopkins University Press, 1992), 3–53, *多处.*

10. 殖民官员经常使用“温和奴隶制”的套语，否认印度在法律上废奴的必要性。较近时期，Indrani Chatterjee, *Gender, Slavery, and Law in Colonial India〔题名译释：殖民印度的性别、奴隶制与法律〕* (Oxford University Press, 1999) 主张，早期殖民印度存在一个“从奴隶制到亲属关系的连续谱”。第四节将更详细地讨论并批评这两种主张。

11.“达利特”意为“被碾压的”或“破碎的”。达利特领袖 B. R. Ambedkar 于 1928 年首次用这一词语指印度的“受压迫阶级”和不可接触者；但自十九世纪中叶起，反种姓政治意识如何形成、最终成为达利特政治意识，还有一段更长的历史可讲。描绘这段历史各个方面的代表性著作包括 Rosalind O’Hanlon, *Caste, Conflict, and Ideology: Mahatma Jotirao Phule and Low Caste Protest in Nineteenth-Century Western India〔题名译释：种姓、冲突与意识形态：圣雄乔蒂拉奥•普勒与十九世纪西印度的低种姓抗议〕* (Cambridge University Press, 1985); Rupa Viswanath, *The Pariah Problem: Caste, Religion, and the Social in Modern India〔题名译释：贱民问题：现代印度的种姓、宗教与社会领域〕* (Columbia University Press, 2014); Anupama Rao, *The Caste Question: Dalits and the Politics of Modern India〔题名译释：种姓问题：达利特与现代印度政治〕* (University of California Press, 2009); Sekhar Bandyopadhyay, *Caste, Protest, and Identity in Colonial India: The Namasudras of Bengal, 1872–1947〔题名译释：殖民印度的种姓、抗议与身份：孟加拉的 Namasudra，1872—1947〕* (Oxford University Press, 2011); and Ramnarayan S. Rawat, *Reconsidering Untouchability: Chamars and Dalit History in North India〔题名译释：重新思考不可接触性：北印度的 Chamar 与达利特历史〕* (Indiana University Press, 2011).

[p. 3] 然而，废奴的伦理—政治潜能，被一个深度投入于“秩序”和税收榨取的殖民国家所推行的废奴政策削弱了。事实上，1843 年第五号法令终止了对奴隶制的法律承认，却没有积极解放受奴役者，因此几乎不能称为“废奴”。许多历史学家已经认识并强调这一点，但更大的全球资本主义反革命背景，却没有得到应有的重视。当印度实施“废奴”时，反动力量在更广泛的帝国世界中，*也*在欧洲与英国内部占据上风。[12]治理印度的殖民官员，同样反对英国的民主运动与工人阶级运动。宗主国的“改革”，意在稳固土地精英在议会中的影响力，并约束更激进的可能性。[13]托马斯•霍尔特认识到，必须把殖民地牙买加置于这一更广泛的背景之中，并指出：应当参照这样一种情境，对种族主义话语的逐渐兴起加以历史化——大众政治自由与对劳动的控制，已经成为根深蒂固、因而具有反革命性质的资产阶级—资本家阶级所面对的问题。[14]

by colonial state-building alone. Acts of defiance, which included claims of having been “wage” workers rather than “slaves,” and an insistence on the right of property to homesteads, were challenges to the practical basis of caste. Though not textually articulated as such, reading the actions of alleged slaves with reference to a larger structure of inference enables us to better grasp the emergence of an anti-caste and eventually Dalit political subjectivity in South Asia from the 1860s onward.[11]

8. I use the term “ideology” to refer to a particular, systematic conjuncture of shared ideas, presuppositions, and sentiments that mediates between our objective experience and our subjective interpretation of that experience. In addition to the work of Thomas Holt cited below, I find Barbara Fields’s historical approach to the ideology of racism particularly useful. See Barbara Fields, “Slavery, Race, and Ideology in the United States of America,” *New Left Review* I/181 (1990): 95–118.

9. Thomas C. Holt, *The Problem of Freedom: Race, Labor, and Politics in Jamaica and Britain, 1832–1938* (Johns Hopkins University Press, 1992), 3–53, *passim.*

10. Colonial officials regularly used the trope of “gentle slavery” to deny the need for legal abolition in India. More recently, Indrani Chatterjee, *Gender, Slavery, and Law in Colonial India* (Oxford University Press, 1999) has argued that there was a “slavery-to-kinship continuum” in early colonial India. Both claims are discussed and criticized in greater detail in section IV.

11. “Dalit” means “ground down” or “broken.” The Dalit leader B. R. Ambedkar first used the term to refer to the “depressed classes” and untouchables of India in 1928, but there is a longer-run story to be told about the coming-into-being of an anti-caste and eventually Dalit political consciousness from the mid-nineteenth century onward. Representative works charting various aspects of this history include Rosalind O’Hanlon, *Caste, Conflict, and Ideology: Mahatma Jotirao Phule and Low Caste Protest in Nineteenth-Century Western India* (Cambridge University Press, 1985); Rupa Viswanath, *The Pariah Problem: Caste, Religion, and the Social in Modern India* (Columbia University Press, 2014); Anupama Rao, *The Caste Question: Dalits and the Politics of Modern India* (University of California Press, 2009); Sekhar Bandyopadhyay, *Caste, Protest, and Identity in Colonial India: The Namasudras of Bengal*, *1872–1947* (Oxford University Press, 2011); and Ramnarayan S. Rawat, *Reconsidering Untouchability: Chamars and Dalit History in North India* (Indiana University Press, 2011).

[p. 3] The ethical-political potential of abolition, however, was undermined by abolitionist policies enacted by a colonial state deeply invested in “order” and revenue extraction. Indeed, Act V of 1843, which put an end to the legal recognition of slavery but did not actively emancipate the enslaved, can scarcely be called “abolition.” Many historians have recognized and emphasized this point, but the larger, global capitalist context of counter-revolution has not received its due. When “abolition” was effected in India, the forces of reaction were ascendant throughout the wider imperial world *and* within Europe and Britain.[12] Colonial officials who governed India also opposed democratic, working-class movements in Britain. “Reform” in the metropole was an attempt to secure the influence of the landed elite in Parliament and to rein in more radical possibilities.[13] Recognizing the need to situate colonial Jamaica

12. 当然，“反革命”是马克思的术语；较早一代历史学家经常使用这一概念，为大西洋世界废奴的失败提供背景。参见 Karl Marx,“The Bourgeoisie and the Counter-Revolution I-IV〔题名译释：资产阶级和反革命，第一至四篇〕,”in David Fernbach, ed., *The Revolutions of 1848: Political Writings Volume 1〔题名译释：1848 年革命：政治著作，第 1 卷〕* (Verso, 1973), 186–212; C. L. R. James, *The Black Jacobins: Toussaint L'Ouverture and the San Domingo Revolution〔题名译释：黑色雅各宾派：杜桑 • 卢维杜尔与圣多明各革命〕* (Vintage Books, 1963); W. E. B. Du Bois, *Black Reconstruction: An Essay Toward a History of the Part Which Black Folk Played in the Attempt to Reconstruct Democracy in America, 1860–1880〔题名译释：黑人的重建：论黑人在美国民主重建尝试中所起作用的历史，1860—1880〕* (Harcourt, Brace, and Co., 1935).

13. E. P. Thompson, *The Making of the English Working Class〔题名译释：英国工人阶级的形成〕* (Vintage Books, 1963); Boyd Hilton, *A Mad, Bad, and Dangerous People? England, 1783–1846〔题名译释：一个疯狂、邪恶而危险的民族？英格兰，1783—1846〕* (Oxford University Press, 2006).

14. Holt, *The Problem of Freedom〔题名译释：自由的问题〕*.

[p. 4] 我将废奴的更广泛情境，以及构成本文证据基础的殖民档案加以历史化，从而对南亚提出类似论点。我既不无批判地阅读档案，也不一概拒绝档案。相反，本文将废奴的可能性与局限，都根植于自由主义和全球资本主义的矛盾之中，并追问：在资本主义、革命与反革命的更广泛历史中，南亚处于什么位置？

within this broader context, Thomas Holt argued that the gradual rise of racist discourses must be historicized with reference to a context where mass political liberty and the control of labor had become a problem for an entrenched (hence counter-revolutionary) bourgeois-capitalist class.[14]

12. “Counter-revolution”is, of course, Marx's term, and an earlier generation of historians regularly used the concept to contextualize the failures of abolition in the Atlantic world. See Karl Marx,“The Bourgeoisie and the Counter-Revolution I-IV,”in David Fernbach, ed., *The Revolutions of 1848: Political Writings Volume 1* (Verso, 1973), 186–212; C. L. R. James, *The Black Jacobins: Toussaint L'Ouverture and the San Domingo Revolution* (Vintage Books, 1963); W. E. B. Du Bois, *Black Reconstruction: An Essay Toward a History of the Part Which Black Folk Played in the Attempt to Reconstruct Democracy in America, 1860–1880* (Harcourt, Brace, and Co., 1935).

13. E. P. Thompson, *The Making of the English Working Class* (Vintage Books, 1963); Boyd Hilton, *A Mad, Bad, and Dangerous People? England, 1783 – 1846* (Oxford University Press, 2006).

14. Holt, *The Problem of Freedom.*

[p. 4] I make a similar argument for South Asia by historicizing the wider context of abolition and the colonial archive that is my evidentiary basis. I neither read the archive uncritically nor reject it *tout court.* Instead, the essay grounds both the possibilities and limits of abolition in the contradictions of liberalism and global capitalism, and asks where South Asia fits within broader histories of capitalism, revolution, and counter-revolution.

废奴、资本主义与意识形态问题 / Abolition, Capitalism, and the Question of Ideology

[p. 4] 关于大西洋世界反奴隶制的辩论激烈而充满激情，但各方在一个根本问题上意见一致：废奴主义是一次重大的意识形态转变，即便不是*最*重要的转变，也是把革命时代与此前各个时代区分开来的关键变化之一。推动这一辩论的问题简单而又宏大：既然奴隶制数千年来一直得到广泛接受并保持稳定，我们该如何解释十八世纪末至十九世纪初废奴主义的出现及其政治成功？没有人否认资本主义与此有关，但如何将这种联系概念化，又如何评价废奴的历史与伦理遗产，意见分歧很大。

[p. 4] 埃里克 • 威廉斯提出了一个简洁有力、由两部分构成的命题：大西洋奴隶制为英国工业化提供资金，因此是英国资本主义的基础；当奴隶制不再有利可图，资本家转而推动“自由”雇佣劳动时，废奴便发生了。[15]这一命题的两个部分都受到挑战。经济史学家表明，奴隶制利润对英国工业化的重要性，远不及威廉斯所假设的程度；机械化由其他因素推动，包括国内工资水平和偶然的科学进展。[16]另一方面，西摩 • 德雷舍证明，废奴发生之时，奴隶制的利润正处于历史最高水平。[17]简言之，废奴是一种“经济自毁”。

[p. 4] The debates over antislavery in the Atlantic world were intense and impassioned, but all parties agreed on a fundamental point: abolitionism was a major ideological shift, and it was one, if not *the* most significant, change that set apart the Age of Revolution from preceding epochs. The animating question of the debate was simple yet sweeping: given the remarkable acceptance and stability of slavery across several millennia, how can we explain the emergence of abolitionism and its political success in the late eighteenth and early nineteenth centuries? No one denied that capitalism had something to do with it, but disagreements abounded about how to conceptualize the link and how to judge the historical and ethical legacy of abolition.

[p. 4] Eric Williams proposed an elegant, two-part thesis: Atlantic slavery financed British industrialization and was thus foundational for British capitalism; abolition occurred when slavery was no longer profitable and capitalists pushed for “free”wage labor.[15] Both halves of the thesis were challenged. Economic historians showed that profits from slavery were far less important for British industrialization than Williams assumed, and mechanization was driven by other factors including domestic wage levels and contingent scientific ad-

15. Williams, *Capitalism and Slavery*〔题名译释：*资本主义与奴隶制*〕.

16. Stanley L. Engerman, "The Slave Trade and British Capital Formation in the Eighteenth Century: A Comment on the Williams Thesis〔题名译释：十八世纪奴隶贸易与英国资本形成：评威廉斯论题〕," *The Business History Review* 46, 4 (1972): 430–43; David Eltis and Stanley L. Engerman, "The Importance of Slavery and the Slave Trade to Industrializing Britain〔题名译释：奴隶制与奴隶贸易对工业化中的英国的重要性〕," *The Journal of Economic History* 60, 1 (2000): 123–44. 另参 Kenneth Morgan, *Slavery, Atlantic Trade and the British Economy, 1660–1800*〔题名译释：*奴隶制、大西洋贸易与英国经济，1660—1800*〕(Cambridge University Press, 2001).

17. Seymour Drescher, *Econocide: British Slavery in the Era of Abolition*〔题名译释：*经济自毁：废奴时代的英国奴隶制*〕(University of North Carolina Press, 1977).

[p. 5] 若干年后，托马斯·哈斯克尔在一篇分为上下两部分的长文中，重新提出资本主义与人道主义之间联系的问题。[18]他认为，抽象、形式上自由的市场关系不断扩展，使人们更有能力识别延伸的道德责任链条，因而让废奴成为一种实践上的可能。然而，托马斯·本德恰当地指出，哈斯克尔所谓的"市场"究竟是什么，以及他主张的究竟是一种新的*评价方式*，还是新的*价值*，并不清楚。[19]资本主义与人道主义之间的联系，仍然单薄而抽象，废奴主义具体而偶然的政治轨迹也未得到充分考察。哈斯克尔辩称，他论证的是"使之成为可能的条件"，而不是必然性；但人们若认为他是在从后门悄悄引入经济决定论，也并非毫无道理。

18. Haskell, "Capitalism and the Origins of the Humanitarian Sensibility, Parts I and II〔题名译释：资本主义与人道主义感受性的起源，第一、二部分〕."

19. Bender, "Introduction〔题名译释：导论〕," in *The Antislavery Debate*〔*题名译释：反奴隶制辩论*〕, 11, 7.

[p. 5] 相比之下，戴维·布里昂·戴维斯在关于奴隶制与废奴的两部权威著作中，既强调废奴主义的新颖性，也强调它作为一种*意识形态*的道德—政治力量。[20]他表明，领导废奴运动的新兴资本家阶级，其经验与世界观的一个基本组成部分，是如何在迅速变化的世界中定义"自由"的问题。"奴隶制"是一个清晰而具体的对照物，可以用来象征"所有威胁人类真正命运的力量"。[21] 因此，自由的意识形态以及原则性的反奴隶制立场，不能还原为资本家的经济利益；但如果不参照精英人物的行动，也无法理解废奴主义的政治轨迹。

20. Davis, *The Problem of Slavery in Western Culture*〔*题名译释：西方文化中的奴隶制问题*〕; Davis, *The Problem of Slavery in the Age of Revolution, 1770–1823*〔*题名译释：革命时代的奴隶制问题，1770—1823*〕.

21. Davis, *The Problem of Slavery in the Age of Revolution*〔*题名译释：革命时代的奴隶制问题*〕, 41.

[p. 5] 在这场辩论的早期参与者中，西摩·德雷舍与托马斯·霍尔特的研究进一步揭示了，如何弥合使某事成为可能的话语与实际结果之间的鸿沟。德雷舍表明，废奴主义之所以在英国成为大众社会运动，是因为它受到工人阶级的广泛支持。[22]他们对受奴役者的同情，根植于自身作为无产阶级工人遭受剥削的经验：他们

vances.[16] Seymour Drescher, on the other hand, demonstrated that abolition occurred at a time when profits from slavery were at an all-time high.[17] Abolition, in short, was "econocide."

15. Williams, *Capitalism and Slavery.*

16. Stanley L. Engerman, "The Slave Trade and British Capital Formation in the Eighteenth Century: A Comment on the Williams Thesis," *The Business History Review* 46, 4 (1972): 430–43; David Eltis and Stanley L. Engerman, "The Importance of Slavery and the Slave Trade to Industrializing Britain," *The Journal of Economic History* 60, 1 (2000): 123–44. Cf. Kenneth Morgan, *Slavery, Atlantic Trade and the British Economy, 1660–1800* (Cambridge University Press, 2001).

17. Seymour Drescher, *Econocide: British Slavery in the Era of Abolition* (University of North Carolina Press, 1977).

[p. 5] Some years later, Thomas Haskell re-opened the question of the link between capitalism and humanitarianism in an extended, two-part essay.[18] He argued that abolition became a practical possibility because the expansion of abstract, formally free market relations enlarged people's capacity to recognize extended chains of moral responsibility. Thomas Bender rightly observed, however, that it was unclear exactly what Haskell meant by the "market," and whether he was claiming a new way of valu*ing*, or new *values.* [19] The link between capitalism and humanitarianism remained thin and abstract, and the contingent, political trajectory of abolitionism was left underexamined. Haskell pleaded that he was making a case for "enabling conditions" rather than inevitability, but one could be forgiven for thinking that he was smuggling in economic determinism through the back door.

18. Haskell, "Capitalism and the Origins of the Humanitarian Sensibility, Parts I and II."

19. Bender, "Introduction," in *The Antislavery Debate*, 11, 7.

[p. 5] By contrast, David Brion Davis, in his two magisterial works on slavery and abolition, emphasized both the newness of abolitionism and its moral-political force as an *ideology.* [20] He showed that a fundamental component of the experience and world-view of the emerging capitalist class that led the abolitionist movement was the question of how to define "freedom" in a rapidly changing world. "Slavery" was a clear-cut and concrete foil, which could be used to symbolize "all the forces that threatened the true destiny of man." [21] The ideology of freedom and a principled antislavery position, therefore, could not be reduced to the economic interests of capitalists, but nor could the political trajectory of abolitionism be understood without reference to the actions of elite figures.

20. Davis, *The Problem of Slavery in Western Culture*; Davis, *The Problem of Slavery in the Age of Revolution, 1770–1823.*

21. Davis, *The Problem of Slavery in the Age of Revolution*, 41.

[p. 5] Among the early contributors to the debate, Seymour Drescher's and Thomas Holt's works offer further insights into how the gap between enabling discourses and actual outcomes might be bridged. Drescher showed that abolitionism became a mass social movement in Britain because it was widely supported by the working classes.[22]

运用反奴隶制理想来抵抗进一步的无产阶级化，而非无批判地支持资本主义扩张。因此，植根于方法论民族主义的资本主义阶段发展观，无法很好地把握废奴主义在历史与政治上的复杂性；无论在所谓“先进”还是“落后”的地区，废奴主义都可能具有相关性。[23]

22. Seymour Drescher, *Capitalism and Antislavery: British Mobilization in Comparative Perspective〔题名译释：资本主义与反奴隶制：比较视野下的英国动员〕* (Oxford University Press, 1987), 1–24, 72–73, 130–32.

23. 近来从南亚视角批判“方法论民族主义”的一部著作是 Manu Goswami, *Producing India: From Colonial Economy to National Space〔题名译释：生产印度：从殖民经济到民族空间〕* (University of Chicago Press, 2004).

[p. 6] 霍尔特区分了作为社会运动和意识形态的废奴主义，与受精英政治家及帝国行政官员塑造的废奴结果，从而使这些洞见更为鲜明。这使他得以论证，反奴隶制是一种革命性意识形态；即使废奴经过一段“学徒期”的缓冲，它仍对获得解放者的生活产生了积极影响。然而，精英利益推动的帝国政策，始终在回应不断变化的情境。在这一历史时刻，大众政治自由已经成为宗主国与殖民地中根深蒂固的资产阶级—资本家阶级的难题，而如何激励“懒惰”工人也已成为反复出现的主题；在这种情况下，牙买加获得解放的劳动者不可能被允许成为行使选举权的独立自耕业主。因此，生物主义的“种族”理论，就成了镇压和剥夺选举权的托辞。

[p. 6] 戴维斯、德雷舍和霍尔特，为研究大西洋世界以外的废奴提供了一个比较框架。但在思考南亚的种姓、奴隶制与废奴问题时，人们很少援引反奴隶制辩论。一个原因是，当代关于资本主义、奴隶制与帝国的文献，主要以负面方式理解“资本主义”，认为它在历史上*仅仅*、而且常常*必然*与奴隶制、榨取型帝国、“种族化”以及新的性别化支配形式相联系。这种倾向遍见于资本主义新史、大量关于大西洋世界之外全球奴隶制的文献，以及规模小得多的全球废奴主义研究。[24]早期的辩证研究方式被抛弃，取而代之的是片面的表述；这些表述可能抹去革命时代废奴主义的新颖性及其意识形态力量。

24. 代表性著作包括 Walter Johnson, *River of Dark Dreams: Slavery and Empire in the Cotton Kingdom〔题名译释：黑暗梦想之河：棉花王国的奴隶制与帝国〕*(Harvard University Press, 2013); Jenkins and Leroy, *Histories of Racial Capitalism〔题名译释：种族资本主义的诸种历史〕*; Paton, “Gender History, Global History, and Atlantic Slavery〔题名译释：性别史、全球史与大西洋奴隶制〕”; Marcus Rediker, Titas Chakraborty, and Matthias van Rossum, eds., *A Global History of Runaways: Workers, Mobility, and Capitalism, 1600–1850〔题名译释：逃亡者全球史：工人、流动性与资本主义，1600—1850〕*(University of California Press, 2019); and Sheetal Chhabria, “Where Does Caste Fit in a Global History of Racial Capitalism?〔题名译释：种姓在种族资本主义全球史中处于何种位置？〕”*Historical Materialism* 31, 2 (2023): 136–60. 关于奴隶制与种族主义是

Their empathy for the enslaved was rooted in experiences of exploitation as proletarian workers: they used antislavery ideals to resist further proletarianization and not to uncritically support capitalist expansion. Stadial notions of capitalist development rooted in methodological nationalism, therefore, are ill-equipped to grasp the historical and political complexity of abolitionism, which could have found relevance in purportedly “advanced” as well as “backward” regions.[23]

22. Seymour Drescher, *Capitalism and Antislavery: British Mobilization in Comparative Perspective* (Oxford University Press, 1987), 1–24, 72–73, 130–32.

23. A recent critique of “methodological nationalism” from a South Asian perspective is Manu Goswami, *Producing India: From Colonial Economy to National Space* (University of Chicago Press, 2004).

[p. 6] Holt sharpened these insights by distinguishing between abolitionism as a social movement and ideology, and abolitionist outcomes shaped by elite politicians and imperial administrators. This enabled him to argue that antislavery was a revolutionary ideology, and even an abolition tempered by a period of “apprenticeship” had a positive impact on the lives of those emancipated. Nevertheless, imperial policy driven by elite interests was always responding to changed contexts. At a historical moment when mass political liberty had become a problem for the entrenched bourgeois-capitalist class in both the metropole and the colonies, and when the need to motivate “lazy” workers had become a recurring theme, emancipated laborers in Jamaica could not be allowed to become independent freeholders exercising franchise. Hence, biologistic theories of “race” became the alibi for repression and disenfranchisement.

[p. 6] Davis, Drescher, and Holt provide a comparative framework for studying abolition beyond the Atlantic world. Yet, the antislavery debate has rarely been invoked when thinking about questions of caste, slavery, and abolition in South Asia. One reason for this is that the contemporary literature on capitalism, slavery, and empire views “capitalism” in primarily negative terms, as historically tied *only* and often *necessarily* to slavery, extractive empires, “racialization,” and new forms of gendered domination. This tendency is discernible across the board in the new histories of capitalism, in the large literature on global slavery beyond the Atlantic world, and in the much smaller literature on global abolitionism.[24] The dialectical approach of an earlier era has been jettisoned in favor of one-sided formulations that threaten to erase both the newness and the ideological force of abolitionism in the Age of Revolution.

24. Representative titles include Walter Johnson, *River of Dark Dreams: Slavery and Empire in the Cotton Kingdom* (Harvard University Press, 2013); Jenkins and Leroy, *Histories of Racial Capitalism*; Paton, “Gender History, Global History, and Atlantic Slavery”; Marcus Rediker, Titas Chakraborty, and Matthias van Rossum, eds., *A Global History of Runaways: Workers, Mobility, and Capitalism*, *1600–1850* (University of California Press, 2019); and Sheetal Chhabria, “Where Does Caste Fit in a Global History of Racial Capitalism?” *Historical*

资本主义所*必需*的主张，其批评可参见 Trevor Burnard and Giorgio Riello,“Slavery and the New History of Capitalism〔题名译释：奴隶制与资本主义新史〕,”*Journal of Global History* 15, 2 (2020): 215–44; and Loïc Wacquant,“The Trap of‘Racial Capitalism,’〔题名译释：“种族资本主义”的陷阱〕”*European Journal of Sociology* 64, 2 (2023): 153–62.

[p. 6] 如今，近代早期印度洋世界广泛存在商业性奴隶制，已得到普遍承认；但我们才刚开始理解种姓如何卷入这一过程。一些学者说明了种姓与奴隶制在实践中相互关联，但超出殖民框架之外的种姓社会史，仍未得到充分考察。[25]此外，人们过于频繁地把“抵抗”仅仅概念化为对榨取型欧洲帝国的挑战。[26]抵抗是否也针对本土社会内部的矛盾？如果是，其内容是什么？历史学家没有回答这些问题，因而留下了无批判地肯定前殖民南亚社会的可能。

25. Nira Wickramasinghe and Alicia Schrikker,“The Ambivalence of Freedom: Slaves in Jaffna, Sri Lanka, in the Eighteenth and Nineteenth Centuries〔题名译释：自由的暧昧性：十八与十九世纪斯里兰卡贾夫纳的奴隶〕,”*The Journal of Asian Studies* 78, 3 (2019): 497–519.

26. Kate Ekama,“Precarious Freedom: Manumission in Eighteenth-Century Colombo〔题名译释：不稳定的自由：十八世纪科伦坡的奴隶解放〕,”*Journal of Social History* 54, 1 (2020): 88 – 108; Titas Chakraborty,“Slave Trading and Slave Resistance in the Indian Ocean World: The Case of Early Eighteenth-Century Bengal〔题名译释：印度洋世界的奴隶贸易与奴隶抵抗：十八世纪早期孟加拉的案例〕,”*Slavery and Abolition* 40, 4 (2019): 706–26; Sujit Sivasundaram, *Waves Across the South: A New History of Revolution and Empire〔题名译释：席卷南方的浪潮：革命与帝国新史〕* (University of Chicago Press, 2020).

[p. 7] 一个例子足以说明其中的利害。在如今已经成熟且充满活力的达利特研究领域，学者常强调，达利特发现“殖民的”自由主义与现代性，有助于处理自身的政治关切，包括代表权问题。[27]然而，同样真实的是，十九世纪殖民国家一直与高种姓土地精英结盟，以榨取税收、控制达利特劳动；而在二十世纪初，它支持达利特的政治诉求，目的仅仅是削弱民族主义关于统一性的主张。[28]此外，到 1910 年代，自由主义关于财产的论证，很容易被用来为现状辩护，即为依种姓差异分配财产的格局辩护。[29]因此，要避免*要么*片面、非历史地捍卫自由主义，*要么*同样片面地将其一*概*拒绝的两个极端，就必须把南亚自由的潜能与失败都加以历史化。接下来两节，将以大西洋为中心的反奴隶制辩论中的洞见，与南亚内部有关种姓、奴隶制和农业社会关系的大量文献相结合，勾勒这种历史化的可能轮廓。

27. 参见下列文集的导论章：Ramnarayan S. Rawat and K. Satyanarayana, eds., *Dalit Studies〔题名译释：达利特研究〕* (Duke University Press, 2016), 1–30, 16.

28. Viswanath, *The Pariah Problem〔题名译释：贱民问题〕*; Sen, *The Decline of the Caste Question〔题名译释：种姓问题的衰落〕*.

29. Rao, *The Caste Question〔题名译释：种姓问题〕*, 第 2 章.

Materialism 31, 2 (2023): 136–60. For critiques of claims about slavery and racism being *necessary* for capitalism, see Trevor Burnard and Giorgio Riello,“Slavery and the New History of Capitalism,”*Journal of Global History* 15, 2 (2020): 215–44; and Loïc Wacquant,“The Trap of‘Racial Capitalism,’”*European Journal of Sociology* 64, 2 (2023): 153–62.

[p. 6] The existence of widespread commercial slavery in the early modern Indian Ocean world is now universally acknowledged, but we are only beginning to understand how caste was implicated in this process. Some scholars have shown that, in practice, caste and slavery were interrelated, but the social history of caste beyond its colonial framing has been left underexamined.[25] Moreover,“resistance”is conceptualized far too often as challenges only to extractive European empires.[26] By leaving open the question of whether resistance was also directed at contradictions within indigenous society, and, if so, with what content, historians have left open the possibility of an uncritical affirmation of pre-colonial South Asian societies.

25. Nira Wickramasinghe and Alicia Schrikker,“The Ambivalence of Freedom: Slaves in Jaffna, Sri Lanka, in the Eighteenth and Nineteenth Centuries,”*The Journal of Asian Studies* 78, 3 (2019): 497–519.

26. Kate Ekama,“Precarious Freedom: Manumission in Eighteenth-Century Colombo,”*Journal of Social History* 54, 1 (2020): 88 – 108; Titas Chakraborty,“Slave Trading and Slave Resistance in the Indian Ocean World: The Case of Early Eighteenth-Century Bengal,”*Slavery and Abolition* 40, 4 (2019): 706 – 26; Sujit Sivasundaram, *Waves Across the South: A New History of Revolution and Empire* (University of Chicago Press, 2020).

[p. 7] One example can illustrate the stakes. In the now-established and vibrant field of Dalit studies, scholars often emphasize that Dalits found“colonial”liberalism and modernity useful for addressing their own political concerns, including the problem of representation.[27] It is also true, however, that the colonial state always allied with upper-caste landed elites to extract revenue and control Dalit labor in the nineteenth century, and it supported Dalit political claims in the early twentieth century solely to undermine nationalist claims to unity.[28] Moreover, by the 1910s, liberal arguments about property could easily be mobilized to justify the status quo, that is, a caste-differentiated distribution of property.[29] Therefore, to avoid the extremes of *either* a one-sided, ahistorical defense of liberalism *or* an equally one-sided rejection of it *tout court*, we must historicize both the potentials and the failures of liberty in South Asia. By combining insights from the Atlantic-centered antislavery debates with the extensive literature on caste, slavery, and agrarian social relations within South Asia, the next two sections sketch the possible outlines for such a historicization.

27. See the introductory chapter of Ramnarayan S. Rawat and K. Satyanarayana, eds., *Dalit Studies* (Duke University Press, 2016), 1–30, 16.

28. Viswanath, *The Pariah Problem*; Sen, *The Decline of the Caste Question.*

29. Rao, *The Caste Question*, chapter 2.

证据：对自由的渴望，以及孟加拉围绕奴隶制法律地位的斗争，约 1813—1843 年 / The Evidence: Aspirations for Liberty and the Struggle over the Legal Status of Slavery in Bengal, ca. 1813–1843

[p. 7] 1826 年 9 月 9 日，在东孟加拉达卡的民事法庭，Golak Narayan Ray 对 Kewal Ram Deo 及另外十六人提起诉讼。Ray 声称，Kewal Ram 等人是 Dakai、Puchai 和 Manai 的后代，而这三人是 Ray 先辈的“世袭奴隶”。[30] 据 Ray 所言，被告及其先辈世代作为奴隶为他及其先辈服役，“靠所拨给的土地维生”。被告近来离开 Ray 的地产，迁居他处。Ray 主张，依照当地习俗，他们仍是他的世袭奴隶，并起诉要求将其追回。法庭受理诉讼，向被告发出传票。

30. 这一案件的完整经过见 Indian Law Commission, *Report on Slavery in India with Appendices, Volume 2*〔*题名译释：印度奴隶制报告及附录，第 2 卷*〕(India: 1841): 251–55.

[p. 7] 代表被告出庭的 Jagannath 和 Sambunath 声称，他们的先辈是 Ray 地产上缴纳地租的佃户，其“职业”是“服务”。他们的父亲是 Ray 家族地产的代理人，他们从未持有用于维生的 *nankar* 土地。[31]当时，被告向作为“上级地主”的 Ray 缴纳“358 卢比 9 安纳的年租”。因此，他们对自己的人身和劳动享有完整的财产权，Ray 关于逃离的主张不能成立。被告坚持认为，诉讼的起因，是他们拒绝把一块土地交给 Ray：地主想将其纳入花园，但被告在该地块上拥有自己的住所。Ray 出于怨恨，遂提起诉讼。

31. *nankar* 一词源自波斯语 *nān*（面包）和 *kar*（税或服役）。为换取经常性服役而授予奴隶、农民及劳动者的土地，称为 *nankar* 土地。

[p. 7] 另外两名被告 Kewal Ram 和 Deb Chand 提出了类似辩护，声称自己是佃户而非奴隶。1828 年 5 月 23 日，案件由 D. B. Morrieson 先生开庭审理。在这次庭审中，Golak Ray 提交了一份 1790 年的 *ikrar*（誓约或承诺），由 Dakai、Puchai 和 Manai 订立，并有当时贾拉尔普尔税收官 W. Douglas 先生的签名。基于这一证据及证人证词，Morrieson 先生判原告胜诉，命令将被告作为奴隶交还 Ray。在判决中，Morrieson 指出，在 1790 年的 ikrar 中，Dakai 及其兄弟承认自己是原告家族的“世袭奴隶”。该文书还表明，Ray 的祖父“因为他们是奴隶，所以以他们的名义购买了 taluka（租佃权）”；他“将年租固定为 370 卢比 2 安纳，并在从既定租收中拨出 9 卢比，作为他们服奴役的 nankar 津给之后，将其交由他们管理”。此外，ikrar 还包含一项条款：Dakai 及其兄弟*以及*他们的后代将“继续为原告服奴役”；如有违约，原告有权起诉。

[p. 7] On 9 September 1826, in the civil court of Dhaka in eastern Bengal, Golak Narayan Ray filed a suit against Kewal Ram Deo and sixteen others. Ray claimed that Kewal Ram and the others were the descendants of Dakai, Puchai, and Manai, the “hereditary slaves” of Ray’s ancestors.[30] According to Ray, the defendants and their ancestors had rendered service as slaves to him and his ancestors for generations, “being supported by lands assigned.” The defendants had recently left Ray’s estate and relocated elsewhere. Ray argued that by local custom they remained his hereditary slaves and sued to recover them. The court accepted the suit, and a summons was issued to the defendants.

30. The entire case history can be found in the Indian Law Commission, *Report on Slavery in India with Appendices, Volume 2* (India: 1841): 251–55.

[p. 7] Appearing for the defendants, Jagannath and Sambunath claimed that their ancestors were rent-paying tenants in the landed estate of Ray and that their “profession” was “service.” Their father was an agent in the estate of the Ray family, and they had never held *nankar* lands for sustenance.[31] At present, the defendants paid Ray, as their “superior landlord,” the “yearly rent of 358 Rupees and 9 annas.” As such, they had full property rights over their person and labor, and Ray’s claim about desertion did not stand. The cause of the complaint, the defendants insisted, was their refusal to hand over to Ray a plot of land that the landlord wished to include in his garden, but in which the defendants had a dwelling of their own. Out of resentment, Ray had brought legal action.

31. The word *nankar* is derived from the Persian words *nān* (bread) and *kar* (tax or service). Lands given to slaves, peasants, and laborers in return for regular service were called *nankar* lands.

[p. 7] Two other defendants, Kewal Ram and Deb Chand, proffered similar defenses, claiming to be tenants rather than slaves. On 23 May 1828, the case came to trial before Mr. D. B. Morrieson. On this occasion, Golak Ray produced an *ikrar* (pledge or promise) from 1790, which had been executed by Dakai, Puchai, and Manai, and which bore the signature of Mr. W. Douglas, the collector of Jalalpur at the time. Based on this evidence and the testimony of witnesses, Mr. Morrieson passed judgment in favor of the plaintiff and ordered the defendants to be made over to Ray as his slaves. In his judgment, Morrieson pointed out that in the ikrar of 1790, Dakai and his brothers had admitted that they were “hereditary slaves” of the plaintiff’s family. It also showed that Ray’s grandfather had “bought the taluka (tenancy) in their name because they were slaves,” that he “fixed the yearly rent at 370 Rupees 2 annas, and that after allowing them nine rupees from the established rent assets as their nankar for services as slaves, he made it over to their charge.” Further, the ikrar

contained a clause that Dakai and his brothers *and* their descendants would “continue to render service of slaves to the plaintiff,” and that in case of default, the plaintiff had the right to sue.

[p. 8] 随后，被告向省上诉法院提起上诉；1829 年 11 月 9 日，W. Cracoft 先生审理了该案。这位法官撤销了下级法院的判令，甚至质疑作为前次判决关键证据的 1790 年 ikrar。Cracoft 认为该契据可疑，对其来源存疑，并断定被告更可能是佃户而非奴隶。然而，同一法院的另一位法官 Charles Smith 先生，于 1829 年 12 月 29 日接着审理该案时，提出了相反看法。

[p. 8] The defendants then filed an appeal at the Provincial Court of Appeal, and their case was heard on 9 November 1829, by Mr. W. Cracoft. The judge reversed the decree of the lower court, and he even cast doubt on the ikrar of 1790 that had been the key evidentiary basis of the previous judgment. Cracoft found the deed suspicious, doubted its provenance, and concluded that the defendants were more likely tenants than slaves. His position, however, was contradicted by Mr. Charles Smith, a judge of the same court, who next heard the case on 29 December 1829.

[p. 8] Smith 相信 ikrar 为真，认为没有理由质疑其真实性。他笼统的评论，展示了许多法官先入为主的态度：“一个家族的奴隶身份，可以*从持续服役中推断出来*；多年过去之后，能够证明最初如何取得奴隶先辈的原始权利凭证，通常很难再找到。在本国这一地区，许多奴隶看上去是有身份、有教养的人，并为主人管理 *zemindari* [地产] 事务。但这并不构成解放的理由。总而言之，上诉人及其先辈是被上诉人的世袭奴隶；如果在已有证据证明其奴隶地位的情况下仍将他们释放，那么大多数奴隶都会变得不服从，并以各种借口设法取得解脱。”[32]

[p. 8] Smith believed the ikrar to be true, and he saw no reason to question its veracity. His sweeping comments demonstrate the presumptive attitudes of many judges: “Slavery of a family may be *inferred from continuous service*; and it seldom happens, that after the lapse of many years, the original title, shewing acquisition of the slave’s forefather, is forthcoming. In this part of the country, many slaves are apparently persons of respectability and educated, and manage the *zemindari* [estate] affairs of their masters. But this constitutes no ground for emancipation. In a word, the appellants and their ancestors are the hereditary slaves of the respondent, and if discharged, notwithstanding proof of their servile state, most slaves will become recusant, and on various pretexts will find means to effect their discharge.”[32]

32. Indian Law Commission, *Report on Slavery, Volume 2*（*题名译释：奴隶制报告，第 2 卷*）, 254, 着重号为本文作者所加.

32. Indian Law Commission, *Report on Slavery, Volume 2*, 254, emphasis mine.

[p. 8] 由于法官之间存在这样的分歧，案件被移交穆尔希达巴德上诉法院，由第三位法官审理。1830 年 4 月 20 日，C. W. Steer 先生确认了 Smith 先生的判决。上诉人随后请求最高民事法院——Sadar Dewani Adalat（简称 SDA）——准许提起特别上诉。1830 年 6 月 21 日，Alexander Ross 先生与 R. H. Rattray 先生批准了这一请求。

[p. 8] Due to such disagreements among judges, the case went to the Murshidabad Court of Appeal to be heard by a third judge. On 20 April 1830, Mr. C. W. Steer confirmed the judgment of Mr. Smith, and the appellants then requested the highest civil court—the Sadar Dewani Adalat (SDA)—for permission to file a special appeal. This was granted on 21 June 1830, by Mr. Alexander Ross and Mr. R. H. Rattray.

[p. 8] SDA 法官的基调，与许多下级法院法官截然相反。1832 年 3 月 26 日，Rattray 先生赞同 Cracoft 先生及其判决理由。此外，当 Ray 的律师指出一位上诉人 Kalikinkar 已经死亡，并坚持应传唤其继承人继续上诉时，Rattray 先生认为，如果“死亡已经解放了 [Kalikinkar]”，便没有必要传唤他们。1832 年 5 月 5 日，Ross 先生最终确认了 Rattray 先生的判决，并补充说，必须明确区分奴隶与依附佃户所提供的“服务”。他认为，上诉人属于后者，持有土地的条件是“缴纳固定地租并提供服务”。只要他们持有土地并依靠土地维生，就必须提供服务；但“放弃租佃权并由此解除自身义务之后，便不再如此”。因此，“有能力使自己获得解放的人，不能被视为奴隶”。

[p. 8] The tone of the SDA judges was diametrically opposed to many in the lower courts. Mr. Rattray, on 26 March 1832, concurred with Mr. Cracoft and with the grounds of his judgment. Moreover, when the lawyers of Ray pointed out that one of the appellants, Kalikinkar, had died, and insisted that his heirs be summoned to follow up on the appeal, Mr. Rattray argued that there was no need to summon them if “death had emancipated [Kalikinkar].” Mr. Ross, on 5 May 1832, finalized the judgment of Mr. Rattray and added that the “service” of slaves and of dependent tenants had to be clearly distinguished. He felt that the appellants had been the latter, who held land “on condition of paying a fixed rent and rendering service.” As long as they held the lands and gained sustenance from them, they had to render service, but “not after abandoning the tenure and thereby discharging themselves.” Thus, “he who has the power to emancipate himself, cannot be considered a slave.”

[p. 9] 这类冲突极为常见。早期殖民孟加拉的农民叛乱与农民意识问题，数十年来一直受到学者关注；但奴隶的行动及其在诉讼中所提出主张的性质，却尚未得到系统研究。[33]有关早期殖民孟加拉奴隶制的专著只有少数几部，而且没有一部直接处理奴隶意识的问题。[34]然而，被指称为“奴隶”的人，常常表达对主人的愤怒。仅 1813 年，他们便在殖民法院提起 150 起诉讼，而这可能只是冰山一角。[35]先后担任警察总监与地方行政司法官的 A. D. Campbell 指出，奴隶的“特殊处境、缺少亲友”，以及“普遍的无知与贫困”，必然阻碍了许多人向富有而强大的主人寻求救济。[36]尽管条件如此不利，被指称为奴隶的人仍在那一年开始主张对宅基地的财产权。传教士注意到了这些主张的大胆与新颖；他们刚刚依据 1813 年《东印度特许状法》，获准进入英国统治的领土。[37]

33. 一项较早且影响深远的论述是 Ranajit Guha, *Elementary Aspects of Peasant Insurgency in Colonial India〔题名译释：殖民印度农民起义的基本方面〕* (Oxford University Press, 1983). 就本文关注的时期而言，近来对古哈方法的批评包括 Jon E. Wilson, “‘A Thousand Countries To Go To’: Peasants and Rulers in Late Eighteenth-Century Bengal〔题名译释：“有一千个国度可去”：十八世纪末孟加拉的农民与统治者〕,” *Past and Present* 189 (2005): 81–109; and Andrew Sartori, *Liberalism in Empire: An Alternative History〔题名译释：帝国内的自由主义：另一种历史〕* (University of California Press, 2014).

34. Amal Kumar Chattopadhyay, *Slavery in the Bengal Presidency, 1772–1843〔题名译释：孟加拉管区的奴隶制，1772—1843〕* (Golden Eagle Publishing House, 1977); Chatterjee, *Gender, Slavery, and Law in Colonial India〔题名译释：殖民印度的性别、奴隶制与法律〕*; Major, *Slavery, Abolitionism, and Empire in India〔题名译释：印度的奴隶制、废奴主义与帝国〕*.

35. Chattopadhyay, *Slavery in the Bengal Presidency〔题名译释：孟加拉管区的奴隶制〕*, 44.

36. 转引自同上，第 44 页。关于早期殖民印度反叛的困难，类似论证见 Ranajit Guha, “The Prose of Counter-Insurgency〔题名译释：反叛乱的散文〕,” in Ranajit Guha, ed., *Subaltern Studies II: Writings on South Asian History and Society〔题名译释：底层研究，第 2 卷：南亚历史与社会论集〕* (Oxford University Press, 1983), 1–42.

37. William Adam, *The Law and Custom of Slavery in British India, in a Series of Letters to Thomas Fowell Buxton, Esq.〔题名译释：英属印度奴隶制的法律与习俗：致托马斯·福韦尔·巴克斯顿先生的一系列书信〕* (Weeks, Jordan, & Co., 1840), 17–20.

[p. 9] Such conflicts were extremely common. While peasant rebellions and the question of peasant consciousness in early colonial Bengal have attracted scholarly attention for decades, the actions of slaves and the nature of their claims in legal cases have not been systematically studied.[33] Only a few monographs exist on slavery in early colonial Bengal, and none of them address the question of slave consciousness directly.[34] Yet, alleged “slaves” often expressed outrage against their masters. In the year 1813 alone, they filed 150 cases in colonial courts, which may have represented only the tip of the iceberg.[35] A. D. Campbell, who served as a Superintendent of Police and then as a Magistrate, noted that a slave’s “peculiar situation, want of relatives and friends,” and “general ignorance and poverty” must have prevented very many from seeking redress against their wealthy and powerful masters.[36] Despite such unfavorable odds, alleged slaves began claiming property rights to their homesteads in that very year. The boldness and novelty of such claims were noted by missionaries who had just been allowed into British territories by the East India Charter Act of 1813.[37]

33. An early and influential account is Ranajit Guha, *Elementary Aspects of Peasant Insurgency in Colonial India* (Oxford University Press, 1983). Recent critiques of Guha’s approach for the period that this essay focuses on include Jon E. Wilson, “‘A Thousand Countries To Go To’: Peasants and Rulers in Late Eighteenth-Century Bengal,” *Past and Present* 189 (2005): 81–109; and Andrew Sartori, *Liberalism in Empire: An Alternative History* (University of California Press, 2014).

34. Amal Kumar Chattopadhyay, *Slavery in the Bengal Presidency, 1772 – 1843* (Golden Eagle Publishing House, 1977); Chatterjee, *Gender, Slavery, and Law in Colonial India*; Major, *Slavery, Abolitionism, and Empire in India.*

35. Chattopadhyay, *Slavery in the Bengal Presidency*, 44.

36. Quoted in ibid., 44. A similar argument about the difficulty of rebellion in early colonial India was made by Ranajit Guha, “The Prose of Counter-Insurgency,” in Ranajit Guha, ed., *Subaltern Studies II: Writings on South Asian History and Society* (Oxford University Press, 1983), 1–42.

37. William Adam, *The Law and Custom of Slavery in British India, in a Series of Letters to Thomas Fowell Buxton, Esq.* (Weeks, Jordan, & Co., 1840), 17–20.

[p. 9] 前述冲突中的判决成为一个先例。1831 年达卡的另一案件中，奴隶主 Gauri Sankar Roy 起诉要求追回逃离的奴隶。[38]两名被告 Kirti Narayan 和 Sri Narayan Deo 出庭作证，也同样主张自己是佃户而非奴隶。Narayan 兄弟坚持说，他们的父亲 Binod Ram 是“自由的，靠务农、租佃土地和提供服务谋生”。[39]父亲去世后，兄弟俩继续以佃户身份持有原告地产上的土地，并缴纳地租。值得注意的是，原告在答辩中声称，依本地习俗，如果 *Bhandaris* 或家内奴隶除了耕种分配给他们维生的土地外，还付租耕种主人的其他土地，这一事实并不解除他们作为奴隶的义务。1832 年 8 月 24 日，Principal Sadar Amin 法官同意原告的主张，命令将全部十三名被告作为奴隶交还 Gauri Sankar。随后，1833 年 2 月 21 日，Kirti Narayan 亲自

[p. 9] The judgment passed in the conflict discussed above became a precedent. In another instance in Dhaka in 1831, a slaveholder—Gauri Sankar Roy—filed a suit to recover runaway slaves.[38] Two of the defendants—Kirti Narayan and Sri Narayan Deo—appeared to testify and made identical claims about being tenants rather than slaves. The Narayan brothers insisted that their father, Binod Ram, was “free and earned his livelihood as a cultivator and tenant of land and by service.”[39] After the demise of their father, the brothers continued to hold lands as tenants on the estate of the plaintiff and paid rent. Notably, the plaintiff in his reply alleged that by the custom of the country, if *Bhandaris* or household slaves cultivated for rent lands of their master more than those assigned for their

前往 Sadar Dewani Adalat，请求受理特别上诉。关键在于，他请求的理由是：本案判决违背了 SDA 在前案——Golak Narayan Ray 诉 Kewal Ram Deo 等人——中于 1832 年 5 月 5 日作出的判决。SDA 因此不得不采取行动，Rattray 先生于 1833 年 3 月 23 日受理了上诉。奴隶主 Gauri Sankar Roy 被要求证明自己的主张。他答称，上诉人不仅从他那里获得维生土地，还获得口粮与其他帮助。他还坚持，“年代久远之后买卖契据的缺失”，不能影响他作为主人的权利。上诉人的奴隶身份，可由“世袭服役的连续性”，以及仆役得到供养的相关证据加以证明。

38. Indian Law Commission, *Report on Slavery, Volume 2*〔*题名译释：奴隶制报告，第 2 卷*〕, 261–65.

39. 殖民国家一贯将社会学范畴“耕作者”与法律范畴“佃户”互换使用。但在实践中，两种身份并不总是重合，因为随着税收链条的延长，法律上界定的佃户，往往是向实际耕种土地的下级佃户收租的人。在 1830 年代的孟加拉东部各地区，这一区分的影响可能尚不及二十世纪初那么大。关于这一过程如何展开及其政治含义的详细叙述，参见 Sartori, *Liberalism in Empire*〔*题名译释：帝国内的自由主义*〕, 第 5 章.

[p. 10] 然而，Rattray 先生并未动摇。他主张撤销下级法院的判令，并于 1833 年 8 月 7 日作出判决，指出缺少买卖契据，也缺少上诉人以世袭服役为条件持有土地的证据，因此 Roy 的主张薄弱。更重要的是，这位法官提出了一项新论点：即便这些土地曾以服役为条件持有，一旦奴隶放弃土地，“他们便不再负有任何奴役请求所主张的义务”。Rattray 承认，上诉人可能属于 *Bhakta-Dasa* 奴隶，即为获取食物而自愿服役的人；但他仍坚持，“当以食物为条件的奴隶放弃服役时，他便成为自由人”。1835 年 12 月 7 日，G. Stockwell 先生审理此案时确认了这些意见，被指称为奴隶的人因此获得解放。

[p. 10] 1835 年，一个几乎完全相同的案件，从边疆地区迈门辛来到 SDA；该地区一场规模巨大的农民叛乱（1826—1833）刚刚结束。[40]奴隶主声称，被告以奴隶身份为他服役，换取使用土地的权利。被指称为奴隶的人拒绝这种身份归属，声称他们偶尔为上诉人提供服务并使用一些土地，但这只是“代替工资”。如今，在服务若干年后，他们决定搬往另一个村庄，因为在那里他们被当作“佃户”。此后，案件照例在多个法院与法官之间往返。最终，它来到 SDA，Stockwell 先生于 1836 年 5 月 17 日作出终局判决。他承认，被告

support, such fact did not discharge them of their liabilities as slaves. On 24 August 1832, the Principal Sadar Amin agreed with the plaintiff and ordered all thirteen defendants to be made over to Gauri Sankar as his slaves. Subsequently, Kirti Narayan went in person to the Sadar Dewani Adalat on 21 February 1833 and asked for a special appeal to be admitted. Crucially, the ground for his request was that the decision in this case was contrary to the judgment passed by the SDA on 5 May 1832 in the previous case, that is, Golak Narayan Ray vs. Kewal Ram Deo and others. The SDA’s hand was forced, and the appeal was admitted by Mr. Rattray on 23 March 1833. Gauri Sankar Roy—the slaveholder—was asked to justify his claim. In response, Roy asserted that the appellants had received not only lands from him for their sustenance but also rations and other aids. He also insisted that the “want of a bill of sale after the lapse of ages” could not affect his right as a master. Slavery of the appellants was proved by the “continuity of hereditary service,” as well as the evidence adduced regarding the support received by the servants.

38. Indian Law Commission, *Report on Slavery, Volume 2*, 261–65.

39. The colonial state consistently used the sociological category of “cultivator” interchangeably with the legal category of “tenant.” In practice, though, the two statuses did not always overlap, because as the revenue chain expanded, a legally defined tenant was often a rent-collector from under-tenants who cultivated the land. In the districts of eastern Bengal in the 1830s, this distinction is likely to have been less consequential than what it became by the early twentieth century. For a detailed narrative about how this unfolded and its political implications, see Sartori, *Liberalism in Empire*, chapter 5.

[p. 10] Mr. Rattray, however, was not swayed. He proposed to reverse the decree of the lower court and passed his judgment on 7 August 1833, pointing out that the lack of a deed of sale and the lack of proof that the appellants held lands in return for hereditary service made Roy’s claim weak. More importantly, the judge made a new argument by insisting that even if such lands had been held in return for service, once the slaves quit such lands, “they cease[d] to be liable to any claim of servitude.” Acknowledging that the appellants were probably *Bhakta-Dasa* slaves, that is, those who offered themselves in servitude for the sake of food, Rattray nevertheless insisted that “when the slave for his food abandons the service, he becomes free.” These opinions were confirmed by Mr. G. Stockwell when he heard the case on 7 December 1835, and thus the alleged slaves were emancipated.

[p. 10] An almost identical case reached the SDA in 1835 from the frontier district of Mymensingh, where a monumental peasant rebellion (1826 – 1833) had just concluded.[40] The slaveholder claimed that the defendants had served him as slaves in return for access to land. The alleged slaves rejected such an ascription and claimed that they had occasionally served the appellant and used some land, but only “in place of wages.” Now, after some years of service, they had decided to move to another village because they were treated there as “tenants.” A famil-

可能是以住所和维生土地为对价的奴隶；但同样清楚的是，他们已经“放弃了这种住所与供养”。Stockwell援引自己在1835年12月7日对Gauri Sankar Roy诉Narayan兄弟一案的判决作为先例，认定被上诉人属于“为食物而为奴的一类奴隶”。因此，在交还所持土地后，他们“有权获得解放”。不久，SDA又受理了一个来自锡尔赫特的相同案件，但由于技术性原因，那次判决未能有利于被指称为奴隶的人。[41]

40. Indian Law Commission, *Report on Slavery, Volume 2〔题名译释：奴隶制报告，第2卷〕*, 269–71. 关于迈门辛农民起义，参见 Willem van Schendel, “‘Madmen’ of Mymensingh: Peasant Resistance and the Colonial Process in Eastern India, 1824–1833〔题名译释：迈门辛的“疯子”：东印度的农民抵抗与殖民进程，1824—1833〕,” *The Indian Economic and Social History Review* 22, 2 (1985): 139–73; and Gautam Bhadra, *Iman O Nishan: Unish Shatake Banglar Krishak Chaitanyer ek Adhyay, c.1800–1850〔题名译释：信仰与旗帜：十九世纪孟加拉农民意识的一章，约1800—1850〕* (Center for Studies in Social Sciences, 1994), 20–164.

41. Indian Law Commission, *Report on Slavery, Volume 2〔题名译释：奴隶制报告，第2卷〕*, 276–80.

[p. 10] 这些案件的进程表明，法官之间不存在共识，因而对于围绕“奴隶”地位的法律争议，也不存在统一的殖民政策。事实上，印度法律委员会的报告承认，这一问题上的意见与实践差异极大；差异不仅出现在本国相距遥远的不同地区，即使在相邻地区，“有时在同一地区的不同分区，甚至同一法院的不同时间”，也同样存在。[42]一些官员承认奴隶制的法律地位，以及由此产生的权利和义务，另一些则完全拒绝承认。即便在承认奴隶制的人当中，“有些人将其存在范围限制在穆罕默德法与印度教法规定的界限之内，另一些则将其扩展至习俗与惯例的更广领域；作为地方行政司法官，有些人帮助主人追回逃亡奴隶，另一些则不作任何干预；有些人准许主人享有适度惩戒的权利，另一些则不认可这种权力的行使”。[43] 简言之，法律处于“有缺陷”的状态，缺少能够指导判决的“明确规则”。

42. Indian Law Commission, *Report on Slavery, Volume 1〔题名译释：奴隶制报告，第1卷〕*, 117.

43. 同上, 118.

[p. 11] 此外，法律的缺陷状态及由此产生的混乱，部分源于“印度教”法*内部*的矛盾。依据包括摩奴、Vrihaspati与那罗陀著作在内的经典文本，婆罗门（最高的祭司种姓）*pandits*（学者）向殖民国家提供了一份清单，列出印度教法中的十五类合法奴隶。[44]但这份清单提出的问题，多于它回答的问题。例如，在实践中，如何区分 *Bhakta-Dasa* 奴隶，即为获取食物而自愿服役的人，与 *Atma-Bikrita* 奴隶，即以某种价款出卖自身的人？因经济困境而进入奴役状态的人，往往从主人那

iar back-and-forth between several courts and judges followed. Eventually, the case arrived at the SDA, and the final decision was passed by Mr. Stockwell on 17 May 1836. He acknowledged that the defendants may have been slaves in consideration of lodging and lands for support. It was also clear, however, that they had “abandoned such lodging and support.” Citing his judgment of 7 December 1835 in the case of Gauri Sankar Roy vs. the Narayan brothers as a precedent, Stockwell concluded that the respondents were “slaves of the class of slaves for their food.” On surrender of the lands held, therefore, they were “entitled to emancipation.” Soon after, another identical case from Sylhet was admitted into the SDA, although the decision in that instance did not go in favor of the alleged slaves for technical reasons.[41]

40. Indian Law Commission, *Report on Slavery, Volume 2*, 269–71. On the Mymensingh peasant rebellion, see Willem van Schendel, “‘Madmen’ of Mymensingh: Peasant Resistance and the Colonial Process in Eastern India, 1824–1833,” *The Indian Economic and Social History Review* 22, 2 (1985): 139–73; and Gautam Bhadra, *Iman O Nishan: Unish Shatake Banglar Krishak Chaitanyer ek Adhyay*, *c.1800–1850* (Center for Studies in Social Sciences, 1994), 20–164.

41. Indian Law Commission, *Report on Slavery, Volume 2*, 276–80.

[p. 10] The trajectory of these cases shows that there was no consensus among judges and hence no coherent colonial policy regarding legal disputes over the status of “slaves.” Indeed, the Indian Law Commission’s report acknowledged that there was a great variety of opinion and practice on this matter and such variety was observable not only in different and distant parts of the country, but even in neighboring districts, and “sometimes [in] different divisions of the same district, and even at different times in the same court.”[42] Some officials admitted the legal standing of slavery and the rights and obligations arising out of it, whereas others rejected it entirely. And even among those who recognized slavery, “some would confine its existence within the bounds prescribed by the Mahomedan and Hindoo laws, others would extend it over the wider field of custom and usage; as Magistrates, some would render assistance to the master to recover his fugitive slaves, others would abstain from any interference; some would permit to the master the right of moderate correction, others would not countenance the exercise of such authority.”[43] The law, in short, was in a “defective” state, and it lacked “clear rules” that could guide judgments.

42. Indian Law Commission, *Report on Slavery, Volume 1*, 117.

43. Ibid., 118.

[p. 11] Moreover, the defective state of the law and the ensuing confusion were partly a function of contradictions *internal* to “Hindu” law. Based on classical texts including those of Manu, Vrihaspati, and Narada, Brahman (the uppermost, priestly caste) *pandits* (scholars) had provided the colonial state with a list of fifteen classes of legal slaves in Hindu law.[44] That list, however, raised more questions than it answered. For example, how would one distinguish in practice between *Bhakta-Dasa* slaves, or those who of-

里获得的不仅是食物；这些额外利益是否应当算作“价款”，仍是问题。这一区分至关重要，因为按照 pandits 自己的说法，*Bhakta-Dasa* 奴隶可以通过放弃生计供给而获得解放，而自卖的奴隶未经主人同意，则永远无法自由。[45]在前述案件中，主人并不把自己的奴隶看作 *Bhakta-Dasas*，一些殖民官员也不这样看；但对被指称为奴隶的人来说，幸运的是，最高级别的法官持这种看法。

44. 完整清单见 Chattopadhyay, *Slavery in the Bengal Presidency*（*题名译释：孟加拉管区的奴隶制*）, 177–78. 另参 Indian Law Commission, *Report on Slavery, Volume 2*（*题名译释：奴隶制报告，第 2 卷*）, 268–69.

45. 参见同上, 268; and Adam, *The Law and Custom of Slavery in British India*〔*题名译释：英属印度奴隶制的法律与习俗*〕, 17–20.

[p. 11] 这种定义问题很容易变得更加复杂。例如，如何区分 *Bhakta-Dasa* 或 *Atma-Bikrita* 奴隶，与 *Rina-Dasa* 奴隶，即自愿向债权人承诺服役一定期限的困顿债务人？三种类别中的任何一种，或它们的组合，都很容易适用于某个具体案件；但按照婆罗门的说法，不同类别的解放规则却不相同。朗布尔代理地方行政司法官就此所作的一番评论颇具启发性：“一百个案件中，有九十个的奴隶地位，源于其先辈为借取少量钱款而把自己变成束缚劳工（这种束缚本应随其死亡而终止），或者源于那些拖欠柴明达尔或其下小农场占有人债务、随后死去的耕作者的后代。我的经验表明，无论前者还是后者，都不会犹豫于强迫已故束缚劳工或无力偿债而死的耕作者的遗孀、子女，立下终身为奴或为束缚劳工的书面承诺；而这一文书，又会使当事人及其后代永远成为奴隶。”[46]

46. Indian Law Commission, *Report on Slavery, Volume 1*〔*题名译释：奴隶制报告，第 1 卷*〕, 66.

[p. 12] 因此，奴役地位究竟如何起源、是否涉及强制，要确切知晓这一点，即使并非不可能，也十分困难。在孟加拉的许多地方，这类案件占绝大多数，这说明，前述冲突中被指称为奴隶的人，在某一时期完全可能曾是佃户。

[p. 12] 不过，最棘手的法律问题，是奴役地位——无论起因如何——是否应由后代继承。至少在这一问题上，婆罗门 pandits 向殖民国家提供了明确指引：*Griha-Jata*，即女奴在主人家中所生的人，同样是奴隶，而且*未经主人同意不能获得解放*。这一定义极为宽泛，因为一个孩子无需由主人所生，也会被视为奴隶；孩子父亲被归入何种奴隶类型，也无关紧要。此外，与任何类型奴隶同居的妇女，都必然获得奴役地位。毫无疑问，这是一种再生产奴役的策略；但显然，到十九世纪二三十年代，昔日奴隶的后代已不愿再忍受这一

fered themselves in servitude for the sake of food, and *Atma-Bikrita* slaves, that is, those who sold themselves for a price? People who entered servitude out of economic distress often received more than just food from their masters, and the question remained whether those additional benefits should be considered a “price” or not. The distinction mattered because, according to the pandits themselves, a *Bhakta-Dasa* slave could be emancipated upon relinquishing his subsistence, but a self-sold slave could never become free without the will of the master.[45] In the cases narrated above, the masters did not conceive of their slaves as *Bhakta-Dasas*, and neither did some colonial officials, but fortunately for the alleged slaves, the highest-ranking judges did.

44. For the full list, see Chattopadhyay, *Slavery in the Bengal Presidency*, 177–78. Cf. Indian Law Commission, *Report on Slavery, Volume 2*, 268–69.

45. See ibid., 268; and Adam, *The Law and Custom of Slavery in British India*, 17–20.

[p. 11] Such problems of definition could easily become more complicated. How, for instance, would one distinguish between either *Bhakta-Dasa* or *Atma-Bikrita* slaves and *Rina-Dasa* slaves, or distressed debtors who voluntarily engaged themselves to their creditors for a stipulated period? All three categories or a combination of them could easily be applicable in a particular case, but the rules of emancipation (according to the Brahmans) were different for the different categories. A remark on this point by the Officiating Magistrate of Rangpur is insightful: “In ninety cases out of the hundred, the servile status of slaves originated either by their forefathers having made themselves bondsmen by borrowing small sums of money (which bondage ought to have expired with their lives), or the descendants of cultivators who have died in debt, either to the zamindars, or persons holding small farms under them: as experience has proved to me, neither would scruple to compel the widows or children of their deceased bondsmen, or insolvent deceased cultivators, to give them written engagements of being slaves or bondsmen for life; and this instrument would cause the parties and their descendants to become slaves in perpetuity.”[46]

46. Indian Law Commission, *Report on Slavery, Volume 1*, 66.

[p. 12] It was thus difficult, if not impossible, to know for certain exactly how servile statuses originated, and whether they involved coercion or not. In many parts of Bengal, these kinds of cases were in the clear majority, which shows that the alleged slaves in the conflicts discussed above may well have been tenants at some point.

[p. 12] The trickiest legal question, however, was that of whether servile status (whatever its source) should be inherited by descendants. On this issue, at least, the Brahman pandits provided the colonial state with a clear guideline: a *Griha-Jata*, or one born in the house of a master from a female slave, was also a slave, and *could not be emancipated without the will of the master.* The definition was extremely wide because the child did not need to be of the master to be considered a slave, nor did the type of slavery ascribed to the child’s father matter. Moreover,

点。在上述所有案件中，主人都试图将奴役地位加诸那些*可能*曾为其家族奴隶者的后代，但新世代进行了抵抗。当殖民法官把这些案件中的被指称为奴隶者视为 *Bhakta-Dasas* 而非 *Griha-Jata*，并决定解放他们时，即使他们并不总是承认，也已经越出了“印度教”法的范围。

[p. 12] 在其他案件中，这一问题也浮现出来，殖民国家作出的裁决具有重要意义。1831 年，法院必须解决一场来自某地区的冲突；该地位于今天的贾坎德邦，与孟加拉西部接壤。原告声称，其先辈在 1769—1770 年大饥荒期间购买了一些奴隶；如今他提起诉讼，是为了把最初那些 *Atma-Bikrita* 奴隶隔了两代的后裔，作为自己的奴隶追回。[47]被告回应称，他们的先辈从未卖身为奴，只是曾“借入”粗粮及其他食物，而这些借项早已归还。原告反驳说，在饥荒中，“没有人会仅仅因为对方承认欠下谷物或钱款，就供养另一个人，*尤其是低种姓者*”。[48] 最终，法院判原告败诉，因为他提供的买卖契据写在普通纸张上，法院认为这一点可疑。

47. Indian Law Commission, *Report on Slavery, Volume 2*〔*题名译释：奴隶制报告，第 2 卷*〕, 258–60.

48. 同上, 着重号为本文作者所加.

[p. 12] 1826 年，边疆地区锡尔赫特的另一场冲突具有相同结构：奴隶主指控对方逃离，而被指称为奴隶的人则回应说，自己是佃户。[49]这一案件中，提交了一份 1757 年的真实买卖契据。问题在于，契据有一条说，当事人卖身是为了提供“六十年和七十年的服务”；这是否意味着，期限届满后，仍在世的后代应被视为自由人？一位法官声称，这一期限只是遵照“习俗”，目的在于确保“年老时免于劳动，而非获得自由”。另一些人反驳说，一个人按规定期限出卖自身，几乎不可能意味着其妻、子及更后代“应作为被拥有的人转移，并有义务为雇用者的后代服役”。被指称为奴隶的人最终获得解放，但这一结果，*违背了*婆罗门 pandits 就该特定案件明确提出的意见：这些人是 *Griha-Jata*，*未经主人同意不能获得解放*。[50]

49. 同上, 265–68.

50. 同上, 268, 着重号为本文作者所加.

[p. 13] 因此，我们看到，至少一些殖民官员支持一种无疑具有现代性的观念：个人不能为先辈的罪过与债务

women cohabiting with any type of slave necessarily acquired servile status. Without doubt, this was a strategy to reproduce servitude, but it is clear that by the 1820s and 1830s, descendants of erstwhile slaves did not want to put up with it. In all of the cases discussed above, the masters were trying to ascribe servile status to the descendants of those who *may* have been slaves to their families, but the new generations resisted. When colonial judges decided to emancipate the alleged slaves in these cases by treating them as *Bhakta-Dasas* rather than *Griha-Jata*, they were exceeding the space of “Hindu” law, even if they did not always acknowledge it.

[p. 12] In other cases, too, this problem reared its head, and the decisions passed by the colonial state were significant. In 1831, the courts had to resolve a conflict from a district that falls in modern-day Jharkhand and borders western Bengal. The plaintiff alleged that his forebears had purchased some slaves during the great famine of 1769–70 and that he was filing the suit to recover as his slaves those who were the descendants of the original *Atma-Bikrita* slaves two generations removed.[47] In response, the defendants claimed that their ancestors had never sold themselves into slavery but rather had received “loans” of coarse grains and other foodstuffs that had since been repaid. The plaintiff shot back, saying that in a famine “no one supported another, *particularly one of low caste*, for the mere acknowledgment of grain or money.”[48] Eventually, the case was decided against the plaintiff because the bill of sale provided was written on plain paper, which the courts found suspicious.

47. Indian Law Commission, *Report on Slavery, Volume 2*, 258–60.

48. Ibid., emphasis mine.

[p. 12] Another conflict from the frontier district of Sylhet in 1826 had an identical structure: the slaveholder alleged desertion, but the alleged slaves responded that they were tenants.[49] In this case, a genuine bill of sale from 1757 was produced. The question was whether the presence of a clause stating that the person was selling himself for “sixty and seventy years of service” meant that after that term, his remaining descendants should be considered free. One judge claimed that the limitation of time was merely in conformance with “custom” and was meant to ensure the “exemption from labor in old age, not freedom.” Others countered that when a person sold himself for a stipulated period, it could scarcely imply that his wife, son, and further descendants “should pass as owned persons, and be liable to render service to the issue of the hirers.” The alleged slaves were eventually emancipated, but this was done *despite* the suggestions of the Brahman pandits, expressly regarding this particular case, that the alleged slaves were *Griha-Jata* and *could not be emancipated without the will of their master.* [50]

49. Ibid., 265–68.

50. Ibid., 268, emphasis mine.

[p. 13] We see, then, that at least some colonial officials were upholding the undeniably modern idea that individ-

承担责任。法官决定解放奴隶时，通常或者利用定义的模糊与重叠，或者越过婆罗门所规定的印度教法的范围。然而，同样清楚的是，这并非殖民者的仁慈，而是回应被指称为奴隶者自下而上的压力。证据显示，昔日奴隶的后代，主要寻求对自身身体与劳动的财产权。他们希望能够选择在哪里、如何以及在谁手下工作；相较于主奴关系的家长主义，他们偏好“贷款”与“工资”的契约关系。这也是对种姓规范的拒绝，因为我们知道，至少在最东部的迈门辛与锡尔赫特地区，nankar 土地是分配给最低种姓用于维生的。[51]这些争议表明，被指称为奴隶的人，希望在任何自己愿意的时候自由迁移；尤其在东孟加拉，土地仍然充裕，直到十九世纪末边疆才封闭。[52]简言之，奴隶更愿意具有佃户或“raiyats”的法律地位，即便这意味着暂时成为 *paikasht* raiyats，即经常迁徙、没有在某个特定村庄永久定居的佃户。[53]

51. Bhadra, *Iman O Nishan*〔*题名译释：信仰与旗帜*〕, 24–25.

52. 关于殖民统治下孟加拉农业史的概述，参见 Sugata Bose, *Peasant Labor and Colonial Capital: Rural Bengal Since 1770*〔*题名译释：农民劳动与殖民资本：1770 年以来的孟加拉乡村*〕(Cambridge University Press, 1993).

53. 虽然我聚焦于高种姓印度教地主的行动，但穆斯林地主也试图阻止其“奴隶”迁移。一例见 Indian Law Commission, *Report on Slavery, Volume 2*〔*题名译释：奴隶制报告，第 2 卷*〕, 272–73. 殖民国家发现，将伊斯兰法适用于奴隶制案件较为容易，因为按照穆斯林法学者的说法，唯一合法的奴隶类别，是战争中的俘虏——无论普通战争，还是针对“不信者”的圣战。

uals cannot be held responsible for the sins and debts of their forebears. When judges decided to emancipate slaves, they usually did so either by playing on the nebulousness and overlapping of definitions or by going beyond the ambit of Hindu law as prescribed by the Brahmans. It is also clear, however, that this was not colonial benevolence but rather a response to pressures from below by alleged slaves. The evidence suggests that descendants of erstwhile slaves primarily sought property rights over their bodies and labor. They wanted to be able to choose where, how, and under whom they would work, and they preferred contractual relationships of “loans” and “wages” over the paternalism of a master-slave relationship. This was a rejection of caste norms as well because we know that at least in the far-eastern districts of Mymensingh and Sylhet, nankar lands were given for subsistence to the lowest castes.[51] The disputes show that the alleged slaves wanted to be able to move freely whenever they wanted to, especially in eastern Bengal, where land was still plentiful, and where the frontier was closed only in the late nineteenth century.[52] Slaves, in short, preferred the legal status of tenants or “raiyats,” even if that meant being *paikasht* raiyats for a time, that is, raiyats who migrate often and are not permanently settled in a particular village.[53]

51. Bhadra, *Iman O Nishan*, 24–25.

52. For an overview of Bengal’s agrarian history under colonial rule, see Sugata Bose, *Peasant Labor and Colonial Capital: Rural Bengal Since 1770* (Cambridge University Press, 1993).

53. Although I have focused on the actions of upper-caste, Hindu landowners, Muslim landowners also tried to prevent their “slaves” from migrating. For an example, see Indian Law Commission, *Report on Slavery, Volume 2*, 272–73. The colonial state found it easier to apply Islamic law to cases of slavery because according to the Maulvis, the only legal classes of slaves were those who were captured in war—either a general war or a holy war against “infidels.”

理解这些证据：殖民孟加拉的废奴与反革命，1772—1843 年 / Making Sense of the Evidence: Abolition and Counter-Revolution in Colonial Bengal, 1772–1843

[p. 13] 要解释这些证据，必须考察殖民治理的轨迹与矛盾，以及被治理社会的*长时段*历史。可以确定的是，自十八世纪七十年代起，对奴隶制与种姓问题的矛盾态度，一直是殖民政策的特点。一种废奴冲动确实存在，表现为不时颁布旨在限制印度洋奴隶贸易的法规。1774 年，英国东印度公司（EIC）领土内部的奴隶交易被禁止。1789 年，奴隶出口遭到禁止；到 1811 年，进口也终于被宣布非法。[54]这些措施只有部分成效，因为奴隶贸易利润极高，公司未能阻止其雇员参与交易和拥有奴隶。然而，更深层的问题在于公司自身的立法措施。

54. 关于这些法规及其影响的更多细节，参见 Richard B. Allen,“Suppressing a Nefarious Traffic: Britain and the Abolition of Slave Trading in India and the Western Indian Ocean, 1770–1830〔题名译释：取缔邪恶贸易：英国与印度及西印

[p. 13] To interpret this evidence, we must consider the trajectory and contradictions of colonial governance, as well as the *longue durée* history of the society being governed. Certainly, ambivalence about questions of slavery and caste was a constant feature of colonial policy from the 1770s onward. There was an abolitionist impulse, which found expression in periodic regulations aimed at curtailing the slave trade in the Indian Ocean. In 1774, commerce in slaves within the territories of the British East India Company (EIC) was banned. In 1789, the export of slaves was prohibited and imports were eventually outlawed in 1811.[54] Such measures were only partially successful because the slave trade was extremely lucrative, and the company failed to prevent its servants from participating in the trade and from owning slaves. The deeper

度洋奴隶贸易的废除，1770—1830〕，”*The William and Mary Quarterly* 66, 4 (2009): 873–94; and Chattopadhyay, *Slavery in the Bengal Presidency〔题名译释：孟加拉管区的奴隶制〕*, 79–115.

[p. 14] 1772 年，总督沃伦·黑斯廷斯批准在英属印度将奴隶制用作刑罚措施。[55]其表面目的是，通过把整个家庭变为奴隶并强迫他们劳动，防范“世袭”盗匪。正如董事会所说，那些在公司领土上四处作乱的盗匪，是“已经把自己置于公开与政府交战状态的恶棍，因此被完全排除在政府法律的一切惠益之外”。[56] 关键在于，国家为用奴隶制打击盗匪辩护时，引入了大西洋奴隶制的“邪恶”性质与印度奴隶制的“温和”性质之间的区分。据说，在印度，奴隶“被当作所属家庭的子女来对待；而且常常因为为奴，反倒获得了*比他们享有自由时所能期望的幸福得多的处境*”。[57] 另一种辩护方式，是把奴隶制建立在“印度教徒”与“穆斯林”的“宗教”法律之上；这必然将“种姓”卷入关于（印度教）奴隶制的殖民话语。

55. Chattopadhyay, *Slavery in the Bengal Presidency〔题名译释：孟加拉管区的奴隶制〕*, 10.

56. 西孟加拉邦档案馆（WBSA），《卡西姆巴扎巡回委员会议事录》，第 I 至 III 卷，1772 年 6 月 28 日，第 22—23 页。

57. 同上, 着重号为本文作者所加.

[p. 14] 1772 年，国家首次把种姓与宗教联系起来，决定在有关继承、婚姻及其他宗教习俗与制度的一切事务中，穆斯林遵循《古兰经》的法律，印度教徒则遵循“Shaster”（原文如此）的法律。法律解释由穆斯林的 Maulvis 和印度教徒的婆罗门承担，由此将高种姓的观点固化为法律。1793 年，康沃利斯侯爵再次维护印度教与伊斯兰的婚姻、种姓、承继及财产继承法律。但是否也应维护印度教与伊斯兰有关*奴隶制*的法律，以及奴隶制是否应被视为两个共同体的“宗教”实践领域，仍是悬而未决的问题。[58]1798 年，Sadar Dewani Adalat 武断地作出裁定，认为即使不是字面条文，1772 年和 1793 年决定的*精神*也表明，伊斯兰与印度教法律应适用于奴隶制案件；总督于 1798 年 4 月 12 日确认了这一裁定。直到 1843 年第五号法令不再从法律上承认奴隶制之前，这始终是英属印度奴隶制赖以存在的不稳固基础。[59]

58. Adam, *The Law and Custom of Slavery in British India〔题名译释：英属印度奴隶制的法律与习俗〕*, 24–28.

59. 同上, 26.

problem, however, was the company’s legislative measures.

54. For more details on these regulations and their effects, see Richard B. Allen, “Suppressing a Nefarious Traffic: Britain and the Abolition of Slave Trading in India and the Western Indian Ocean, 1770–1830,” *The William and Mary Quarterly* 66, 4 (2009): 873–94; and Chattopadhyay, *Slavery in the Bengal Presidency*, 79–115.

[p. 14] In 1772, Governor-General Warren Hastings sanctioned slavery in British India as a penal measure.[55] The ostensible aim was to prevent “hereditary” robbers by enslaving entire families and putting them to work. As the Court of Directors put it, the robbers causing havoc across the company territories were “wretches who have placed themselves in a state of declared war with Government, and are, therefore, wholly excluded from every benefit of its laws.” [56] Crucially, when justifying the use of slavery to combat robbery, the state introduced the distinction between the “evil” character of Atlantic slavery and the “mild” character of its Indian counterpart. In India, apparently, slaves were “treated as the children of families to which they belong; and often acquire a *much happier state by their slavery than they could have hoped for by the enjoyment of liberty.*” [57] Another mode of justification was the grounding of slavery in the “religious” laws of “Hindus” and “Muslims,” which necessarily implicated “caste” in the colonial discourse on (Hindu) slavery.

55. Chattopadhyay, *Slavery in the Bengal Presidency*, 10.

56. West Bengal State Archives (WBSA), Proceedings of the Committee of Circuit at Kasimbazar, Vol. I to III, 28 June 1772, 22–23.

57. Ibid., emphasis mine.

[p. 14] The state first connected caste to religion in 1772, when it decided that in all matters pertaining to inheritance, marriage, and other religious usages and institutions, the laws of the Koran concerning Muslims and those of the “Shaster” (sic) with respect to the Hindus would be followed. The exposition of the law was left to the Maulvis for Muslims, and the Brahmans for Hindus, thereby entrenching an upper-caste point of view as law. In 1793, Hindu and Muslim laws of marriage, caste, succession, and inheritance were upheld again by the Marquis Cornwallis. But the question of whether Hindu and Muslim laws of *slavery* should also be upheld, and whether slavery should be deemed a domain of “religious” practice of the two communities, was still open.[58] The matter was settled arbitrarily in 1798 when the Sadar Dewani Adalat decreed that the *spirit*, if not the letter, of the 1772 and 1793 decisions suggested that Islamic and Hindu laws should also apply to cases of slavery, and this was confirmed by the Governor-General on 12 April 1798. Until legal nonrecognition of slavery by Act V of 1843, this remained the shaky foundation upon which slavery in British India rested.[59]

58. Adam, *The Law and Custom of Slavery in British India*, 24–28.

59. Ibid., 26.

[p. 14] 其实，1798 年的决定在逻辑上延续了 1772 年与 1793 年的决定，因为种姓*确实*与奴隶制相联系；如果前者可被视为宗教习俗，那么后者为何不可？当时，在孟加拉，种姓与奴隶制作为彼此重叠却又不同的劳动控制样态运作："不洁"种姓的人数，规定了农业奴隶总人数的上限，因为"洁净"种姓可以成为同等或更高种姓的家内奴隶，却不能成为农业奴隶。[60]多个种姓的证人，在向殖民国家作证时得出了相同结论；婆罗门证人更竭力强调，只有某些种姓才"适合"某些工作。例如，Vishnu Dutt Dalli 于 1839 年 2 月 5 日作证说，来自"低等"的 Chandala、Dom、Hera 和 Kumar 种姓的奴隶，只能从事户外工作。[61]

60. 南印度也同样如此。参见 Dharma Kumar, "Caste and Landlessness in South India〔题名译释：南印度的种姓与无地状态〕," *Comparative Studies in Society and History* 4, 3 (1962): 337–63; and Viswanath, *The Pariah Problem〔题名译释：贱民问题〕*.

61. Indian Law Commission, *Report on Slavery, Volume 2〔题名译释：奴隶制报告，第 2 卷〕*, 23–29.

[p. 15] 因此，在早期殖民法律框架内部，只有两条路径可以坚持奴隶制*并非*宗教实践领域：或者承认种姓也不只是宗教制度，而是具有根本世俗基础的制度；或者人为地把奴隶制问题从它所嵌入的更广泛社会关系中分离出来。前一条路从未被采取；通向 1843 年的过程中，走的是后一条路。

[p. 15] 到 1810 年代，被指称为奴隶者与主人之间的法律冲突，已成为迫切问题。本德尔坎德地区法官兼地方行政司法官 John Richardson，与巡回委员会法官 William Leycester，分别于 1808 年和 1815 年主张彻底废奴。[62]1818 年，首席法官 John Harrington 以一个尖锐的问题，进一步加强了干预的理由。他问：当奴隶"不拥有、也无法取得任何财产，以使他们能够提起诉讼或进行抗辩"，而在诉讼未决期间又可能被限制行动甚至囚禁时，他们如何能指望获得自己渴望的自由？[63]然而，深度投入于税收榨取和"秩序"维持的国家，断然驳回了废奴的理由。代理总督 John Adam（1823 年 1—8 月）及其继任者 William Amherst（1823—1828）一致认为，奴隶制与人民的"习俗和感情"交织在一起。因此，干预只会引起不满，冒着造成麻烦的风险并不明智。[64]

62. Chattopadhyay, *Slavery in the Bengal Presidency〔题名译释：孟加拉管区的奴隶制〕*, 171, 191.

63. 转引自同上, 194.

64. 同上, 199–200.

[p. 15] 在 1833 年《东印度特许状法》中，议会加入了一项条款，规定至 1837 年 4 月 12 日应在印度领土废除奴

[p. 14] In truth, the 1798 decision followed logically from the ones made in 1772 and 1793 because caste *was* correlated to slavery, and if the former could be deemed a religious usage, then why not the latter? At the time, caste and slavery functioned as overlapping yet distinct modalities of labor control in Bengal: the number of "impure" castes set the upper limit to the total number of agrarian slaves, because "pure" castes could be domestic slaves to castes of the same or higher status, but they could not be agrarian slaves.[60] Witnesses belonging to multiple castes arrived at the same conclusion in their testimonies to the colonial state, and Brahman witnesses went to great lengths to emphasize that only some castes were "fit" for some kinds of work. Vishnu Dutt Dalli, for instance, testified on 5 February 1839 that slaves of the "low-ranked" Chandala, Dom, Hera, and Kumar castes could only be employed in outdoor work.[61]

60. This was true in southern India as well. See Dharma Kumar, "Caste and Landlessness in South India," *Comparative Studies in Society and History* 4, 3 (1962): 337–63; and Viswanath, *The Pariah Problem.*

61. Indian Law Commission, *Report on Slavery, Volume 2*, 23–29.

[p. 15] Within the framework of early colonial law, therefore, one could insist that slavery was *not* a domain of religious practice only in two ways: either accept that caste was also not just a religious institution but one that had a fundamentally secular basis, or artificially separate the question of slavery from the larger set of social relations within which it was embedded. The former was never done, and the latter course was followed in the run-up to 1843.

[p. 15] Legal conflicts between alleged slaves and their masters became a pressing issue by the 1810s. John Richardson, the District Judge and Magistrate of Bundelkhand, and William Leycester, a judge of the Committee of Circuit, argued for complete abolition in 1808 and 1815, respectively.[62] Chief Justice John Harrington sharpened the case for intervention with a poignant question in 1818. How, he asked, could slaves hope to attain the liberty they desired when they were "possessed of and [could] acquire no property to enable them to institute or defend a suit" and when they could be subjected to restraint or even confinement while suits were pending?[63] The case for abolition, however, was summarily rejected by a state deeply invested in extracting revenue and maintaining "order." Acting Governor-General John Adam (January–August 1823) and his successor William Amherst (1823–1828) both concurred that slavery was interwoven with the "customs and feelings" of the people. Intervention, therefore, would only wreak discontent and it was inexpedient to hazard the inconvenience.[64]

62. Chattopadhyay, *Slavery in the Bengal Presidency*, 171, 191.

63. Quoted in ibid., 194.

64. Ibid., 199–200.

[p. 15] In the 1833 East India Charter Act, Parliament inserted a clause stating that slavery would be abolished in

隶制。[65]东印度公司董事会回应称，只有反奴隶制立法不“损害种姓感情或财产权”，他们才会批准。[66]原始条款甚至被修改为：未经“适当顾及婚姻法，以及父亲的权利和权威”，不得通过任何法规。[67]这一点并不令人意外，因为 1772 年把种姓归入宗教领域时，讨论的基本条件便已确定。其结果荒谬而悖谬：任何对种姓与奴隶制关系的承认，都只会加强*反对*干预和废奴的论据。

65. *Slavery and the Slave Trade in British India; With Notices of the Existence of these Evils in the Islands of Ceylon, Malacca, and Penang, Drawn from Official Documents*〔*题名译释：英属印度的奴隶制与奴隶贸易；附据官方文件记述锡兰、马六甲及槟榔屿这些弊害的存在*〕(Thomas Ward and Co., 1841), 47–48.

66. 同上, 47.

67. 同上, 48–49.

[p. 15] 1833 年特许状授权设立的法律委员会，于 1835 年成立；但作为本文主要证据基础的《奴隶制报告》，经历重大延误，直到 1841 年才出版。即便如此，印度与英国的奴隶制捍卫者仍坚持说：废奴会激怒地主与贵族；没有“惩戒”和强制，劳动者会变得懒散而无生产力；印度的奴隶制“不过是种姓事务”。[68] 面对如此凶狠的反对，奴隶制的反对者选择了较容易的出路。他们没有论证，把种姓归入宗教领域从一开始就是错误，而是接受了种姓与奴隶制之间的人为区分。他们最终陷入狭隘的法律主义，并错误地假设，在“自由劳动”制度下，种姓差异将不再重要。[69]1843 年 4 月 7 日通过的第五号法令，仅规定在法律上不承认奴隶制，并未主动宣布任何人自由。[70]即便这样一项敷衍的措施，也被选择性实施，殖民国家仍继续把被指称为奴隶者交还主人。首要目的始终是榨取税收与控制劳动。

68. 同上, 40–52, 49. 另参 Chattopadhyay, *Slavery in the Bengal Presidency*〔*题名译释：孟加拉管区的奴隶制*〕, 156–251; and Indian Law Commission, *Report on Slavery, Volume 1*〔*题名译释：奴隶制报告，第 1 卷*〕, 371–79.

69. 先属浸礼会、后来转为一位论派的传教士 William Adam，尤其容易犯这一错误。参见 Adam, *The Law and Custom of Slavery in British India*〔*题名译释：英属印度奴隶制的法律与习俗*〕, 172.

70. 第五号法令全文见 Chattopadhyay, *Slavery in the Bengal Presidency*〔*题名译释：孟加拉管区的奴隶制*〕, 250–51.

[p. 16] 这些趋势表明，把种姓归入宗教领域并与土地精英共谋的倾向，并不是十九世纪末的新事物。1858 年之后的“宗教中立”政策，意味着种姓被完全归入政治之外的“民族社会”领域，[71] 但这一冲动本身有更深的根源。早期殖民国家从无到有地在“印度教”法之下*创造*先例，而莫卧儿孟加拉——尤其东部边疆地区——的奴隶制，则根植于经济困境，不能化约为文本训令。[72]保守派与废奴派之间的辩论也表明，在早

the Indian territories by 12 April 1837.[65] The EIC’s Court of Directors responded that they would only approve of legislation against slavery if it did not do “violence to the feelings of Caste, or the rights of property.”[66] The original clause was even modified to state that no regulation would be passed without “due regard to the laws of marriage, and the rights and authorities of fathers.”[67] This is not surprising because the terms of discussion had already been set when caste was relegated to the religious domain in 1772. This meant, paradoxically and perversely, that any acknowledgment of the caste-slavery relationship could only serve to strengthen the argument *against* intervention and abolition.

65. *Slavery and the Slave Trade in British India; With Notices of the Existence of these Evils in the Islands of Ceylon, Malacca, and Penang, Drawn from Official Documents* (Thomas Ward and Co., 1841), 47–48.

66. Ibid., 47.

67. Ibid., 48–49.

[p. 15] The Law Commission sanctioned by the 1833 Charter was set up in 1835, but the Report on Slavery—which is the chief evidentiary basis of this essay—was published after significant delay in 1841. Even then, the defenders of slavery in both India and Britain kept insisting that abolition would make landowners and noblemen indignant; that laborers would become idle and unproductive without “correction” and coercion; and that slavery in India was “nothing more than an affair of caste.”[68] Faced with such vicious opposition, the opponents of slavery chose the easy way out. Instead of arguing that relegating caste to the domain of religion had been a mistake from the beginning, abolitionists conceded the artificial distinction between caste and slavery. They ended up being narrowly legalistic, and they wrongly assumed that caste distinctions would cease to matter in a regime of “free labor.”[69] Act V, passed on 7 April 1843, argued only for the legal nonrecognition of slavery and did not actively declare anyone free.[70] Even this half-hearted measure was applied selectively, and the colonial state continued to return alleged slaves to their masters. The principal aim, always, was the extraction of revenue and the control of labor.

68. Ibid., 40–52, 49. Cf. Chattopadhyay, *Slavery in the Bengal Presidency*, 156–251; and Indian Law Commission, *Report on Slavery, Volume 1*, 371–79.

69. The Baptist and later Unitarian missionary William Adam was especially prone to this error. See Adam, *The Law and Custom of Slavery in British India*, 172.

70. For the full text of Act V, see Chattopadhyay, *Slavery in the Bengal Presidency*, 250–51.

[p. 16] These trends show that the tendency to consign caste to the religious sphere and to collude with landed elites was not new in the late nineteenth century. The policy of “religious neutrality” after 1858 meant that caste was relegated entirely to a “national social” domain beyond politics,[71] but the impulse itself had deeper roots. The early colonial state *created* precedents under “Hindu” law from scratch, whereas slavery in Mughal Bengal—especially in

期殖民印度，一种东方主义套语已经十分有力：种姓是一个静止的、延续数千年的“宗教”制度，表达着印度独有的等级偏好。[73]这一看法影响了第五号法令，并持续存在到二十世纪相当长的一段时间，给达利特带来负面后果。

71. Viswanath, *The Pariah Problem〔题名译释：贱民问题〕*.

72. Adam, *The Law and Custom of Slavery in British India〔题名译释：英属印度奴隶制的法律与习俗〕*, 54.

73. Nicholas B. Dirks, *Castes of Mind: Colonialism and the Making of Modern India〔题名译释：心智中的种姓：殖民主义与现代印度的形成〕* (Princeton University Press, 2001). 对这种据称存在的偏好，二十世纪的一次重新表述见 Louis Dumont, *Homo Hierarchicus: The Caste System and its Implications〔题名译释：等级人：种姓制度及其意涵〕*, trans. Mark Sainsbury, Louis Dumont, and Basia Gulati (Oxford University Press, 1970).

[p. 16] 然而，这并不意味着种姓仅仅是一种“殖民建构”。[74] 这样的表述遮蔽了南亚更长期的社会史，也遮蔽了在种姓与农业奴隶制塑造的情境中，废奴所具有的伦理—政治意义。它*彻底*抹去了废奴的意识形态内容，也无法解释被指称为奴隶者的主体性。在方法上，殖民建构论预设：任何对种姓*长时段*历史的承认，都*必然*意味着接受东方主义套语。然而，如果把种姓理解为对财产与权力的不平等获取——在实践中体现为对土地、水与市场的不平等获取，以及对性关系的规制——那么，就可以撰写一种拒绝*要么*是延续数千年的宗教制度、*要么*只是殖民治理产物这一二元对立的种姓史。

74. Dirks, *Castes of Mind〔题名译释：心智中的种姓〕*.

[p. 16] 以这些方式理解种姓，存在悠久而丰富的史学传统。这一传统表明，在早期历史时期（约公元前 1000 年至公元 300 年）与早期中世纪（约公元 600—1200 年），种姓的形成与农业扩张、使土地控制权的*继承*有序化的需要，以及从土地与市场征收税收的需要相契合。换言之，社会分层的发展，与父权制的出现和以农业为财政基础的国家的形成同步。[75]因此，种姓是一种*直接*控制资源、*间接*控制劳动的方式。亲属关系持续中介着劳动的社会关系，这意味着动产奴隶制在印度从未占据主要地位，属于“较低”种姓也不自动意味着具有奴隶身份。[76]与此同时，有些群体仅存在于定居化吸纳过程的边缘。他们一方面在空间上与社会上遭到排斥，另一方面又作为遭受超额剥削的劳动者被纳入这一制度。这些“种姓之外”或“不可接触者”社群，在南亚各地具有十分不同的族群与文化身份；而不可接触性的概念，归根结底依赖一种模糊的婆罗门式仪式污染观念。不过，印度所有地方语言都承认存在一个被隔离的人口群体，他们被迫从事整个社会视为“不洁”的卑贱劳动。[77]*Chandala* 这类泛印度术语，发挥着同样的概念作用。

75. 影响较大的研究包括 Damodar Dharmananda Kosambi, *An Introduction to the Study of Indian History〔题名译释：印度史研究导论〕* (Popular Prakashan, 1956); Ram Saran Sharma, *Sudras in Ancient India: A Social History of the Lower Order Down to Circa AD 600〔题名译释：古代印度的首陀罗：截*

the eastern, frontier districts—was grounded in economic distress and was not reducible to textual dicta.[72] The debates between conservationists and abolitionists also show that the Orientalist trope of caste as a static, millennia-old “religious” institution expressing a uniquely Indian penchant for hierarchy was strong in early colonial India.[73] This view influenced Act V and it survived well into the twentieth century with negative consequences for Dalits.

71. Viswanath, *The Pariah Problem.*

72. Adam, *The Law and Custom of Slavery in British India*, 54.

73. Nicholas B. Dirks, *Castes of Mind: Colonialism and the Making of Modern India* (Princeton University Press, 2001). A twentieth-century re-statement of this supposed penchant is Louis Dumont, *Homo Hierarchicus: The Caste System and its Implications*, trans. Mark Sainsbury, Louis Dumont, and Basia Gulati (Oxford University Press, 1970).

[p. 16] This does not imply, however, that caste was merely a “colonial construction.”[74] Such a formulation occludes from vision longer-running South Asian social histories and the ethical-political valence of abolition in a context shaped by caste and agrarian slavery. It erases the ideological content of abolition *tout court* and cannot explain the subjectivity of the alleged slaves. Methodologically, the colonial construction thesis presupposes that any acknowledgment of the *longue durée* history of caste *necessarily* implies an acceptance of the Orientalist trope. If, however, caste is understood in terms of differential access to property and power—instantiated in practice as differential access to land, water, and markets, and the regulation of sexuality—then a history of caste can be written that refuses the binary of *either* millennia-old religious institution *or* merely a product of colonial governance.

74. Dirks, *Castes of Mind.*

[p. 16] There is a long and extensive tradition of historiography that approaches caste in such terms. It shows that in the early historical era (ca. 1000 BCE–ca. 300 CE) and the early medieval period (ca. 600–1200 CE), caste formation was congruent with agrarian expansion, the need to streamline *inheritance* over the control of land, and the extraction of revenue from land and markets. In other words, the growth of stratification was coeval with the emergence of patriarchy and the formation of states with fiscal bases in agriculture.[75] Caste was thus a way to *directly* control resources and *indirectly* control labor. Kinship relations continued to mediate social relations of labor, which meant that chattel slavery was never of major importance in India, and belonging to a “lower” caste did not automatically mean slave status.[76] At the same time, some groups existed only on the fringes of the absorptive process of sedentarization. They were simultaneously excluded (both spatially and socially) and yet included within the system as super-exploited laborers. These “outcaste” or “untouchable” communities varied widely across South Asia in terms of their ethnic and cultural identities, and the concept of untouchability ultimately depends on a vague, Brahmanical notion of ritual pollution. Nevertheless, all Indian vernaculars recognize the existence of a segregated sub-population forced

至约公元 600 年的下层社会史〕(Motilal Banarsidass, 1980); Suvira Jaiswal, *The Making of Brahmanic Hegemony: Studies in Caste, Gender, and Vaishnava Theology〔题名译释：婆罗门霸权的形成：种姓、性别与毗湿奴派神学研究〕*(Tulika Books, 2016); Romila Thapar, *Ancient Indian Social History: Some Interpretations〔题名译释：古代印度社会史：若干解释〕*(Orient Longman, 1978); Manu V. Devadevan, *The 'Early Medieval' Origins of India〔题名译释：印度的"早期中世纪"起源〕*(Cambridge University Press, 2020); and Sumit Guha, *Beyond Caste: Identity and Power in South Asia, Past and Present〔题名译释：超越种姓：南亚过去与现在的身份和权力〕*(Brill, 2013).

76. Damodar Dharmananda Kosambi, "The Basis of Ancient Indian History (I)〔题名译释：古代印度史的基础（一）〕," *Journal of the American Oriental Society* 75, 1 (1955): 35–45, 44.

77. 参见 Rupa Viswanath 在下列圆桌讨论中的发言："关于 Rupa Viswanath 著作的圆桌讨论：*The Pariah Problem: Caste, Religion, and the Social in Modern India〔题名译释：贱民问题：现代印度的种姓、宗教与社会领域〕*与种姓研究," *Modern Asian Studies* 56, 1 (2022): 1–64, 49–64. 关于不可接触性起源的不同理论，一项稍显陈旧但富有洞见的讨论是 Prabhati Mukherjee, *Beyond the Four Varnas: The Untouchables in India〔题名译释：四瓦尔纳之外：印度的不可接触者〕*(Motilal Banarsidass, 1988).

[p. 17] 早期中世纪的孟加拉并不例外。两个主要统治王朝——波罗王朝（约公元 750—1162 年）与犀那王朝（约公元 1070—1230 年）——明确致力于维持规范性的种姓秩序。[78]它们大规模向高种姓授予土地，向这些由被列为"低种姓"的劳动力耕种的土地征税，构成国家的财政基础。从九世纪晚期起，授地文书开始提及具有不同土地获取程度的整个种姓序列：婆罗门居于顶端，"不可接触"的 Chandala（"凡人中最低等者"）居于底端。[79]公元第二个千年最初几个世纪的资料表明，从事农业及其他卑贱劳动的最低种姓，例如 Chamar、Chandala 和 Dom，在空间上被隔离，居住在政治都城和高种姓乡村聚落的边界之外。[80]我们无法估计这些社群的人口规模随时间发生的变化，但这是档案沉默的结果。最近有关中世纪南印度和莫卧儿南亚奴隶制的研究，强调了这种"隐形化"过程带来的挑战。[81]

78. 关于宗教在农业国家与社会形成中的作用，详见 Kunal Chakrabarti, *Religious Process: The Purāṇas and the Making of a Regional Tradition〔题名译释：宗教过程：《往世书》与区域传统的形成〕*(Oxford University Press, 2001).

79. Ryosuke Furui, *Land and Society in Early South Asia: Eastern India 400–1250 AD〔题名译释：早期南亚的土地与社会：公元 400—1250 年的东印度〕*(Routledge, 2020).

80. Rina Bhaduri, "Madhyayuge Banglay Nagarbinyasher Dhara〔题名译释：中世纪孟加拉城市布局的发展趋势〕," in Aniruddha Ray and Ratnabali Chattopadhyay, eds., *Madhyayuge Banglar Samaj O Sanskriti〔题名译释：中世纪孟加拉的社会与文化〕*(K. P. Bagchi & Co., 1992), 31–59, 53.

81. Leslie C. Orr, "Slavery and Dependency in Medieval South India〔题名译释：中世纪南印度的奴隶制与依附关系〕," in Craig Perry *et al.*, eds., *The Cambridge World History of Slavery, Volume 2, AD 500–AD 1420〔题名译释：剑桥世界奴隶制史，第 2 卷，公元 500—1420 年〕*(Cambridge University Press, 2021), 313–33; Emma Kalb, "In and Out of Sight: Textual Traces of Slavery and the Enslaved in Mughal South Asia〔题

to perform degrading labor deemed "impure" by society at large.[77] Pan-Indian terms such as *Chandala* do identical conceptual work.

75. Influential contributions include Damodar Dharmananda Kosambi, *An Introduction to the Study of Indian History* (Popular Prakashan, 1956); Ram Saran Sharma, *Sudras in Ancient India: A Social History of the Lower Order Down to Circa AD 600* (Motilal Banarsidass, 1980); Suvira Jaiswal, *The Making of Brahmanic Hegemony: Studies in Caste, Gender, and Vaishnava Theology* (Tulika Books, 2016); Romila Thapar, *Ancient Indian Social History: Some Interpretations* (Orient Longman, 1978); Manu V. Devadevan, *The 'Early Medieval' Origins of India* (Cambridge University Press, 2020); and Sumit Guha, *Beyond Caste: Identity and Power in South Asia, Past and Present* (Brill, 2013).

76. Damodar Dharmananda Kosambi, "The Basis of Ancient Indian History (I)," *Journal of the American Oriental Society* 75, 1 (1955): 35–45, 44.

77. See Rupa Viswanath's contribution to "A Roundtable on Rupa Viswanath's *The Pariah Problem: Caste, Religion, and the Social in Modern India* and the Study of Caste," *Modern Asian Studies* 56, 1 (2022): 1–64, 49–64. A slightly dated but insightful discussion of competing theories about the origins of untouchability is Prabhati Mukherjee, *Beyond the Four Varnas: The Untouchables in India* (Motilal Banarsidass, 1988).

[p. 17] Early medieval Bengal was no exception to these trends. The two major ruling dynasties—the Palas (ca. 750–1162 CE) and the Senas (ca. 1070–1230 CE)—were explicitly committed to the maintenance of a normative caste order.[78] They made land grants on a large scale to upper castes, and the collection of revenue from these lands, cultivated by labor that was ranked as "low caste," was the fiscal basis of the state. From the late ninth century onward, grants began to mention the entire caste spectrum with varying degrees of access to land: Brahmans were at the top and the "untouchable" Chandalas (the "lowest of the mortals") were at the bottom.[79] Sources from the early centuries of the second millennium CE show that the lowest castes involved in agrarian and other forms of menial labor—such as the Chamars, the Chandalas, and the Doms—were kept spatially segregated, and they lived outside the boundaries of political capitals and upper-caste rural settlements.[80] We have no way of estimating variations in the size of these communities over time, but that is a function of silences in the archive. Recent scholarship on slavery in medieval South India and Mughal South Asia has emphasized the challenges posed by such processes of "invisibilization."[81]

78. For details on the role of religion in the creation of an agrarian state and society, see Kunal Chakrabarti, *Religious Process: The Purāṇas and the Making of a Regional Tradition* (Oxford University Press, 2001).

79. Ryosuke Furui, *Land and Society in Early South Asia: Eastern India 400–1250 AD* (Routledge, 2020).

80. Rina Bhaduri, "Madhyayuge Banglay Nagarbinyasher Dhara," in Aniruddha Ray and Ratnabali Chattopadhyay, eds., *Madhyayuge Banglar Samaj O Sanskriti* (K. P. Bagchi & Co., 1992), 31–59, 53.

81. Leslie C. Orr, "Slavery and Dependency in Medieval South

名译释：视野内外：莫卧儿南亚奴隶制与被奴役者的文本踪迹〕,” in Mònica Ginés-Blasi, ed., *Intentional Invisibilization in Modern Asian History: Concealing and Self-Concealed Agents〔题名译释：现代亚洲史中的刻意隐形化：隐匿他者与隐匿自身的行动者〕* (De Gruyter, 2025), 121–39.

[p. 17] 莫卧儿印度的情境已大不相同，然而，种姓仍以新的方式不断被*重新构成*。国家不再明确致力于规范性的种姓秩序，农业税收制度也庞杂而复杂。不过，在村落与次区域层面，以种姓为基础的等级结构仍是次大陆大部分地区的基本框架。[82]农民具有习惯性的土地使用权，但被束缚于土地，既不能自由转让土地，也不能任意弃地而去。[83]在孟加拉，绝大多数田间劳动仍由中低种姓承担，其中包括被视为不可接触者的人；最大的地产则由仪式等级最高的婆罗门和强大的 Kayastha 控制。[84]事实上，直到 1830 年，在某些地区，婆罗门持有土地所支付的地租仍比低种姓对应群体低 50%。[85]

82. Irfan Habib, *The Agrarian System of Mughal India, 1556–1707〔题名译释：莫卧儿印度的农业制度，1556—1707〕* (Asia Publishing House, 1963), 120–23, 136–89.

83. 同上, 115–17.

84. Ratnalekha Ray, *Change in Bengal Agrarian Society c.1760–1850〔题名译释：孟加拉农业社会的变迁，约 1760—1850〕* (Manohar Books, 1979), 30, 52–53, 89, 110–11, 136, 171, 210, 215–16, *多处*; John R. McLane, *Land and Local Kingship in Eighteenth-Century Bengal〔题名译释：十八世纪孟加拉的土地与地方王权〕* (Cambridge University Press, 1993), 37, 54–55, 57, 62–63, 144, 156–57, 309–10, *多处.*

85. Aditee Nag Chowdhury-Zilly, *The Vagrant Peasant: Agrarian Distress and Desertion in Bengal, 1770–1830〔题名译释：流浪的农民：孟加拉的农业困境与逃离，1770—1830〕* (Franz Steiner, 1982), 144.

[p. 18] 莫卧儿孟加拉的奴隶制，既不能化约为种姓，也不能化约为超越时间的“印度教”法或“穆斯林”法。相反，它根植于饥荒、洪水与债务造成的经济困境。[86]面对服役与死亡之间的选择，许多人选择了前者。1694 至 1770 年的卖身契表明，一旦完成买卖，主人便完全控制奴隶及其后代。惩罚逃亡奴隶十分常见。主人力图榨取尽可能多的劳动，并保留在奴隶年老、失去生产能力时抛弃他们的权利。[87]除了自愿卖身，内部奴隶供给还通过暴力——即绑架男人、女人与儿童——以及自然增长得以维持，因为与奴隶结婚或同居的妇女也会获得奴役身份，而她们的子女会继承这一身份。[88]

86. Shamita Sarkar, “Slavery in Late Mughal Bengal〔题名译释：莫卧儿晚期孟加拉的奴隶制〕,” *Proceedings of the Indian History Congress* 55 (1994): 600–5; Habib, *The Agrarian System〔题名译释：农业制度〕*, 110.

87. Sarkar, “Slavery in Late Mughal Bengal〔题名译释：莫卧儿晚期孟加拉的奴隶制〕,” 602.

88. Chattopadhyay, *Slavery in the Bengal Presidency〔题名译释：孟加拉管区的奴隶制〕*, 12.

[p. 18] 与此同时，农业社会关系深深嵌入种姓规范之中，后者又塑造着奴隶制的规范。并非所有种姓都

India,” in Craig Perry *et al.*, eds., *The Cambridge World History of Slavery, Volume 2, AD 500–AD 1420* (Cambridge University Press, 2021), 313–33; Emma Kalb, “In and Out of Sight: Textual Traces of Slavery and the Enslaved in Mughal South Asia,” in Mònica Ginés-Blasi, ed., *Intentional Invisibilization in Modern Asian History: Concealing and Self-Concealed Agents* (De Gruyter, 2025), 121–39.

[p. 17] Mughal India was a vastly different context and yet caste continued to be *reconstituted* in new ways. The state was no longer explicitly committed to a normative caste order and the agrarian revenue system was sprawling and complex. At the village and sub-regional levels, however, a caste-based hierarchical structure remained the basic framework in much of the subcontinent.[82] Peasants had customary rights of usage, but they were tied to the land, which they could neither freely alienate nor desert at will.[83] In Bengal, the vast majority of field labor continued to be performed by middling and lower castes, including those deemed untouchable, whereas the largest estates were controlled by the ritually highest-ranked Brahmans and the powerful Kayasthas.[84] Indeed, as late as 1830, Brahmans continued to hold lands at 50% lower rent than their lower-caste counterparts in some regions.[85]

82. Irfan Habib, *The Agrarian System of Mughal India, 1556–1707* (Asia Publishing House, 1963), 120–23, 136–89.

83. Ibid., 115–17.

84. Ratnalekha Ray, *Change in Bengal Agrarian Society c.1760–1850* (Manohar Books, 1979), 30, 52–53, 89, 110–11, 136, 171, 210, 215–16, *passim*; John R. McLane, *Land and Local Kingship in Eighteenth-Century Bengal* (Cambridge University Press, 1993), 37, 54–55, 57, 62–63, 144, 156–57, 309–10, *passim.*

85. Aditee Nag Chowdhury-Zilly, *The Vagrant Peasant: Agrarian Distress and Desertion in Bengal, 1770–1830* (Franz Steiner, 1982), 144.

[p. 18] Slavery in Mughal Bengal was reducible neither to caste nor to timeless “Hindu” and “Muslim” laws. Rather, it was grounded in economic distress caused by famines, floods, and debt.[86] Faced with a choice between servitude and death, many chose the former. Deeds of sale between 1694 and 1770 show that once a sale was effected, the master had complete control over a slave and their heirs. Punishment of runaway slaves was common. Masters aimed at the extraction of maximum possible work and reserved the right to cut loose unproductive slaves in old age.[87] Besides voluntary sale, the internal supply of slaves was also sustained through violence—that is, the kidnapping of men, women, and children—and natural growth, since women who married or cohabited with slaves also acquired servile status and their children inherited it.[88]

86. Shamita Sarkar, “Slavery in Late Mughal Bengal,” *Proceedings of the Indian History Congress* 55 (1994): 600–5; Habib, *The Agrarian System*, 110.

87. Sarkar, “Slavery in Late Mughal Bengal,” 602.

88. Chattopadhyay, *Slavery in the Bengal Presidency*, 12.

[p. 18] At the same time, agrarian social relations were deeply embedded in caste norms, which shaped norms of

能被要求从事所有类型的劳动；一般而言，高种姓也不能成为身份较低者的农业奴隶。[89]价格因种姓而异，并在饥荒期间暴跌；属于 Bagdi 等卑贱种姓的奴隶，必须明确放弃子女对父母已经取得的任何财产所拥有的权利。[90]许多卖身契以地方语言写成，表明印度社会中的所有行动者都完全理解种姓与奴隶制的规范及预期。[91]

89. Indian Law Commission, *Report on Slavery in India〔题名译释：印度奴隶制报告〕, Volume 2*, 29, *多处.*

90. Sarkar, “Slavery in Late Mughal Bengal〔题名译释：莫卧儿晚期孟加拉的奴隶制〕,” 602; Chattopadhyay, *Slavery in the Bengal Presidency〔题名译释：孟加拉管区的奴隶制〕*, 47.

91. 部分地方语言写成的卖身契汇编于 Siva Ratan Mitra, *Types of Early Bengali Prose〔题名译释：早期孟加拉语散文类型〕* (University of Calcutta Press, 1922), 86–87, 105, 109, 115.

[p. 18] 因此，两种看似矛盾的情况，可以同时成立。十六至十八世纪间的经济、政治与文化变化——一些学者将其与南亚（或更广泛的欧亚大陆）的“早期现代性”联系起来——大幅提高了更自由地获取土地和进入市场所涉及的利害关系。[92]商业化与劳动分工的扩展，意味着种姓处于变动之中，既非静止不变，也不只是宗教性的。[93]与此同时，精英试图通过奴隶制以及对种姓等级的重新强调，加强对劳动的控制。例如，在印度西部的拉贾斯坦和马哈拉施特拉，十七与十八世纪不仅见证了奴隶制的增多，也见证了对种姓“纯洁性”和“血统”的重新强调。[94]两省的背景，都是地区势力对莫卧儿统治的挑战以及农业扩张。奴隶不仅包括战俘，还包括深受饥荒和持续债务之害的人。他们从事各种劳动，包括服兵役与农业劳动。商人种姓的向上流动，也使他们希望与被视为不可接触者的人保持更大“距离”；这一计划通过与前殖民时期马尔瓦尔国家结盟而得以实现。[95]

92. Sanjay Subrahmanyam, “Connected Histories: Notes Towards a Reconfiguration of Early Modern Eurasia〔题名译释：关联的历史：重构早期现代欧亚大陆的札记〕,” *Modern Asian Studies* 31, 3 (1997): 735–62; Rosalind O’Hanlon, “Contested Conjunctures: Brahman Communities and ‘Early Modernity’ in India〔题名译释：充满争议的交汇：印度的婆罗门社群与“早期现代性”〕,” *The American Historical Review* 118, 3 (2013): 765–87. 批评意见见 Dipesh Chakrabarty, “The Muddle of Modernity〔题名译释：现代性的混沌〕,” *The American Historical Review* 116, 3 (2011): 663–75.

93. Sanjay Subrahmanyam, “Hearing Voices: Vignettes of Early Modernity in South Asia, 1400–1750〔题名译释：倾听声音：南亚早期现代性的片段，1400—1750〕,” *Daedalus* 127, 3 (1998): 75–104. 另参 A. K. Ramanujan et al., eds., *When God is a Customer: Telugu Courtesan Songs by Ksetrayya and Others〔题名译释：当神成为客人：Ksetrayya 等人的泰卢固语艺妓歌曲〕* (University of California Press, 1994).

94. 参见 Ramya Sreenivasan 与 Sumit Guha 收录于下列文集的文章：Indrani Chatterjee and Richard M. Eaton, eds., *Slavery and South Asian History〔题名译释：奴隶制与南亚历史〕* (Indiana University Press, 2006), 136–61, 162–86.

95. Divya Cherian, *Merchants of Virtue: Hindus, Muslims, and Untouchables in Eighteenth-Century South Asia〔题名译释：美德商人：十八世纪南亚的印度教徒、穆斯林与不可接触者〕* (University of California Press, 2023). 关于孟加拉商人与中层

slavery in turn. Not all castes could be asked to do all kinds of labor, and upper castes could not, in general, be agrarian slaves to those of lower status.[89] Prices varied by caste and plummeted during famines, and slaves belonging to menial castes such as the Bagdis had to explicitly disavow the rights of their children to any property that their parents had acquired.[90] Many deeds of sale were written in the vernacular, which shows that the norms and expectations of caste and slavery were fully legible to all actors within Indian society.[91]

89. Indian Law Commission, *Report on Slavery in India*, *Volume 2*, 29, *passim.*

90. Sarkar, “Slavery in Late Mughal Bengal,” 602; Chattopadhyay, *Slavery in the Bengal Presidency*, 47.

91. Some vernacular bills of sale are compiled in Siva Ratan Mitra, *Types of Early Bengali Prose* (University of Calcutta Press, 1922), 86–87, 105, 109, 115.

[p. 18] Two apparently contradictory things could thus be simultaneously true. Economic, political, and cultural changes between the sixteenth and eighteenth centuries, which some scholars have associated with an “early modernity” in South Asia (or Eurasia more broadly), massively increased the stakes of being able to access land and markets more freely.[92] Commercialization and expanded division of labor meant that caste was in a state of flux and neither static nor merely religious.[93] Concurrently, elites attempted to tighten control over labor through slavery and a renewed emphasis on caste hierarchies. In Rajasthan and Maharashtra in western India, for example, the seventeenth and eighteenth centuries witnessed not only an increase in the incidence of slavery but also a renewed emphasis on “purity” of caste and “descent.”[94] The context in both provinces was one of regional assertions against Mughal rule and agrarian expansion. The slaves were not only war captives, but also those affected badly by famine and ongoing debt. They performed all kinds of labor, including military service and agrarian labor. Upward mobility among merchant castes also led to a desire for greater “distance” from those deemed untouchable, a project that was brought to fruition in alliance with the pre-colonial state of Marwar.[95]

92. Sanjay Subrahmanyam, “Connected Histories: Notes Towards a Reconfiguration of Early Modern Eurasia,” *Modern Asian Studies* 31, 3 (1997): 735–62; Rosalind O’Hanlon, “Contested Conjunctures: Brahman Communities and ‘Early Modernity’ in India,” *The American Historical Review* 118, 3 (2013): 765–87. For a critique, see Dipesh Chakrabarty, “The Muddle of Modernity,” *The American Historical Review* 116, 3 (2011): 663–75.

93. Sanjay Subrahmanyam, “Hearing Voices: Vignettes of Early Modernity in South Asia, 1400–1750,” *Daedalus* 127, 3 (1998): 75–104. Cf. A. K. Ramanujan et al., eds., *When God is a Customer: Telugu Courtesan Songs by Ksetrayya and Others* (University of California Press, 1994).

94. See the essays by Ramya Sreenivasan and Sumit Guha in Indrani Chatterjee and Richard M. Eaton, eds., *Slavery and South Asian History* (Indiana University Press, 2006), 136–61, 162–86.

95. Divya Cherian, *Merchants of Virtue: Hindus, Muslims, and*

农业群体中的类似愿望，参见 Hitesranjan Sanyal, “Continuities of Social Mobility in Traditional and Modern Society in India: Two Case Studies of Caste Mobility in Bengal〔题名译释：印度传统社会与现代社会中社会流动的连续性：孟加拉种姓流动的两个案例研究〕,” *The Journal of Asian Studies* 30, 2 (1971): 315–39.

[p. 19] 早期殖民国家通过建立一种“法律专制”，成为第二种趋势抵御第一种趋势的堡垒。[96]必须在这一背景下理解围绕所谓“奴隶”法律身份发生的冲突。在冲突最频繁的孟加拉东部边疆地区，种姓形成仍处于初始阶段。约自 1574 年起出现在孟加拉东部的穆斯林农民，并非由此前属于“印度教”的人组成，而是由农业秩序边缘的本土社群组成，其中包括 Chandala。[97] 十七与十八世纪，高种姓土地精英和放贷者经常预付开垦所需的资本，[98] 但农业社会关系可能采取何种形式，绝非预先确定。在这一情境中，奴隶制是巩固控制的工具。[99]事实上，到十八世纪，大地产通常拥有数量可观的奴隶。[100]在东部的达卡—贾拉尔普尔、拉杰沙希和锡尔赫特地区，奴隶也会*随同*土地出售。[101]因此，在地多人少的边疆地区，拥有奴隶对于保障劳动力供给尤为重要。这就是为什么，尽管“废奴”的性质极其有限，锡尔赫特的 580 名印度教地主与 700 名穆斯林地主仍反对第五号法令。他们在 1843 年 2 月提交的请愿书中声称，世袭奴隶并不认为自己的处境“卑下”，而有“身份”的人也“没有办法雇用付薪仆役，来履行通常由奴隶履行的职责”。[102]

96. Radhika Singha, *A Despotism of Law: Crime and Justice in Early Colonial India〔题名译释：法律专制：早期殖民印度的犯罪与司法〕* (Oxford University Press, 1998).

97. Richard M. Eaton, *The Rise of Islam and the Bengal Frontier, 1204–1760〔题名译释：伊斯兰教的兴起与孟加拉边疆，1204—1760〕* (University of California Press, 1993), 118–19, 132.

98. 同上, 220–27.

99. 下列著作中的数据——Chattopadhyay, *Slavery in the Bengal Presidency〔题名译释：孟加拉管区的奴隶制〕*, 31–78, ——不仅表明早期殖民孟加拉奴隶数量庞大，也表明农业奴隶在总数中占有很高比例。到 1841 年，孟加拉约有 250 万奴隶，整个英属印度则可能有 800 万或 900 万。同上, 66, 11.

100. Shirin Akhtar, “The Role of the Zamindars in Bengal, 1707–1772〔题名译释：孟加拉柴明达尔的作用，1707—1772〕” (PhD diss., School of Oriental and African Studies, University of London, 1973), 249.

101. Indian Law Commission, *Report on Slavery in India〔题名译释：印度奴隶制报告〕, Volume 1*, 92.

102. 转引自 Chattopadhyay, *Slavery in the Bengal Presidency〔题名译释：孟加拉管区的奴隶制〕*, 248–50.

[p. 20] 因此，法律冲突中被指称为“奴隶”的人，不仅挑战了奴隶制，也挑战了生产和再生产种姓的*实践*：控制土地与劳动的获取。这种挑战并未以语言或文本明确表达。证据也不意味着存在一种连贯的废奴意识形态。尽管如此，行动与思想不能被人为分开。被奴

Untouchables in Eighteenth-Century South Asia (University of California Press, 2023). For a similar desire among merchants and middling agrarian groups in Bengal, see Hitesranjan Sanyal, “Continuities of Social Mobility in Traditional and Modern Society in India: Two Case Studies of Caste Mobility in Bengal,” *The Journal of Asian Studies* 30, 2 (1971): 315–39.

[p. 19] The early colonial state, by instituting a “despotism of law,” acted as a bulwark for this second trend against the first.[96] The conflicts over the legal status of alleged “slaves” must be read against this background. In the eastern, frontier districts of Bengal where conflicts recurred most frequently, caste formation was still inchoate. The Muslim peasantry that emerged in eastern Bengal from ca. 1574 onward was not composed of those who had earlier been “Hindu” but rather of autochthonous communities at the fringes of the agrarian order, including the Chandalas.[97] Upper-caste landed elites and moneylenders often forwarded the capital necessary for reclamation during the seventeenth and eighteenth centuries,[98] but the form that agrarian social relations could take was by no means a foregone conclusion. Slavery in this context was a tool for consolidating control.[99] Indeed, by the eighteenth century, large estates regularly included a considerable number of slaves.[100] In the eastern districts of Dhaka-Jalalpur, Rajshahi, and Sylhet, slaves were also sold *with* the land.[101] Slaveholding, therefore, was especially important in frontier regions with a favorable land-labor ratio to guarantee labor supply. This is why, despite the extremely limited character of “abolition,” 580 Hindu and 700 Muslim landholders in Sylhet opposed Act V. In a petition submitted in February 1843, they claimed that hereditary slaves did not think of their situation as “degraded” and that men of “rank” had “no means of employing paid servants to perform the duties which were ordinarily performed by slaves.”[102]

96. Radhika Singha, *A Despotism of Law: Crime and Justice in Early Colonial India* (Oxford University Press, 1998).

97. Richard M. Eaton, *The Rise of Islam and the Bengal Frontier, 1204–1760* (University of California Press, 1993), 118–19, 132.

98. Ibid., 220–27.

99. The data in Chattopadhyay, *Slavery in the Bengal Presidency*, 31–78, shows not only the large number of slaves in early colonial Bengal but also the high proportion of agrarian slaves in the total number. By 1841, Bengal had approximately 2.5 million slaves, and the whole of British India likely had eight or nine million. Ibid., 66, 11.

100. Shirin Akhtar, “The Role of the Zamindars in Bengal, 1707–1772” (PhD diss., School of Oriental and African Studies, University of London, 1973), 249.

101. Indian Law Commission, *Report on Slavery in India*, *Volume 1*, 92.

102. Quoted in Chattopadhyay, *Slavery in the Bengal Presidency*, 248–50.

[p. 20] Thus, the alleged “slaves” in legal conflicts challenged not only slavery but also the *practices* that produced and reproduced caste: the control of access to land and labor. The challenge was not articulated in language or texts. Nor does the evidence imply a coherent ideology of

役者克服重重阻力，挑战既有的奴隶制实践，由此在实践中*实现*了对种姓的批判。可以说，对掌权者而言，这种实际挑战比文本诠释更令人忧虑，因为后者未必挑战构成种姓的实践。否则，我们不禁要问，边疆地区的地主为何如此担忧殖民国家那毫无力度的“废奴”？

[p. 20] 在一个几乎不可能直接进入历史主体精神生活的研究领域，把殖民档案中的证据放入更大的推论结构来解读，并不少见。托马斯•霍尔特在其影响深远的著作中，同样通过考察获得解放的黑人工人*做了什么*，推断他们*想了什么*。虽然霍尔特没有获得解放者实际言论的证据，他仍追问：何种信念能够帮助我们理解他们采取的行动？这一诠释实践虽充满困难，却使霍尔特能够把牙买加的案例置于有关废奴、种族主义和资本主义的更广泛辩论之中。本文试图在较小的尺度上，对印度进行类似尝试；与霍尔特不同的是，我确实拥有被指称为“奴隶”者发声的证据，尽管这种发声经过殖民国家的中介。

[p. 20] 这一中介事实，是否使档案变得无法使用？未必。大西洋世界的研究者几十年来一直热烈讨论，如何接近被奴役者的主体性。[103]学界广泛认同，殖民档案记录的法律冲突，使社会断裂线变得可辨；而在此类冲突的某些时刻，甚至被奴役者也能够“说话”。[104] 尽管情境不同，南亚所涉及的利害关系却惊人地相似：书写并解释那些在档案中遭到刻意“隐形化”的整个社群的行动。与大西洋研究者一样，印度洋奴隶制研究者近来也指出，仔细关注法律冲突并为法庭案件编制索引，可能使一种立足档案的“全球底层（社会）史”成为可能。[105]本文试图参与并深化这些讨论。

103. 关于这些文献近期的一项综合讨论，参见 Trevor Burnard, *Writing the History of Global Slavery〔题名译释：书写全球奴隶制的历史〕* (Cambridge University Press, 2023), 40–56.

104. 同上, 47–51.

105. Alexander Geelen et al., “Between Markets and Chains: An Exploration of the Experiences, Mobility, and Control of Enslaved Persons in Eighteenth-Century South-West India〔题名译释：市场与锁链之间：探究十八世纪西南印度被奴役者的经历、流动性及其所受控制〕,” in Alicia Schrikker and Nira Wickramasinghe, eds., *Being a Slave: Histories and Legacies of European Slavery in the Indian Ocean〔题名译释：身为奴隶：印度洋欧洲奴隶制的历史与遗产〕* (Leiden University Press, 2020), 75–98, 78.

[p. 21] 与此同时，殖民档案是政治性建构的产物，并具有特定的历史性。虽然 1813 年《特许状法》因对印度工业前景产生重大影响，而获得历史学家更多关注，但 1833 年法令的政治后果同样深远。[106]它把治理与政策制定的全部责任，移交给一个致力于税收榨取的公司国家，印度问题也彻底退出英国议会的议程。它还倡导一种由托马斯•麦考莱主导的威权“改革”愿景；麦考莱主持的法律委员会编写了《奴隶制报告》。

abolitionism. Nevertheless, action and thought cannot be artificially separated. By challenging established practices of slavery against all odds, the enslaved thereby *effected* a critique of caste in practice. Arguably, such a practical challenge was more worrisome for those in power than a textual exegesis that did not necessarily challenge the practices that constituted caste. Why else, we might ask, were landholders in frontier districts so concerned about the toothless “abolition” of the colonial state?

[p. 20] Reading evidence from the colonial archive in terms of a larger structure of inference is not uncommon in a field of study where direct access to the mental life of historical subjects is virtually impossible. In his influential work, Thomas Holt also inferred what the emancipated black workers *thought* by looking at what they *did.* Although Holt had no evidence of actual statements made by the emancipated, he asked what kind of commitments could help us make sense of the actions they undertook. Fraught as this interpretive exercise is, it enabled Holt to situate the Jamaican case within broader debates about abolition, racism, and capitalism. This essay attempts something similar on a smaller scale for India, and unlike Holt, I do have evidence where the alleged “slaves” speak, albeit through the mediation of the colonial state.

[p. 20] Does the fact of this mediation make the archive unusable? Not necessarily. Scholars of the Atlantic world have been engaged in a lively debate for decades about how to access the subjectivity of the enslaved.[103] There is a broad consensus that legal conflicts recorded in colonial archives make social fault lines legible, and at certain moments in such conflicts even the enslaved could “speak.” [104] Despite the difference in context, the stakes involved are strikingly similar for South Asia: writing about and interpreting the actions of entire communities that have been deliberately “invisibilized” in the archive. Like their Atlantic counterparts, scholars of Indian Ocean slavery have recently noted that careful attention to legal conflicts and the indexing of court cases might enable an archivally grounded “global subaltern (social) history.” [105] This essay seeks to contribute to and deepen such conversations.

103. For a recent, synthetic discussion of this literature, see Trevor Burnard, *Writing the History of Global Slavery* (Cambridge University Press, 2023), 40–56.

104. Ibid., 47–51.

105. Alexander Geelen et al., “Between Markets and Chains: An Exploration of the Experiences, Mobility, and Control of Enslaved Persons in Eighteenth-Century South-West India,” in Alicia Schrikker and Nira Wickramasinghe, eds., *Being a Slave: Histories and Legacies of European Slavery in the Indian Ocean* (Leiden University Press, 2020), 75–98, 78.

[p. 21] At the same time, the colonial archive was politically constituted and historically specific. Although the Charter Act of 1813 has received far greater attention from historians due to its major implications for the future of Indian industry, the Act of 1833 was no less consequential politically.[106] It transferred the entire responsibility of governance and policymaking to a company-state invested in revenue extraction, and the India Question dropped out of

因此，当布鲁厄姆勋爵于 1841 年 10 月 5 日在议会提出印度奴隶制问题时，埃伦伯勒勋爵回应说：“议会明智地规定，有关这一议题的立法创议，应留给总督及其参事会。”[107] 事实上，埃伦伯勒于 1842 年 2 月至 1844 年 6 月担任印度总督，其间监督第五号法令的通过，却曾谴责 1833 年法令中有关废奴的条款“毫无用处，也无必要”。他认为，它将“激起土地所有者的愤慨”，并“动摇本土军官的信心与忠诚”。[108]

106. Anthony Webster, “The Political Economy of Trade Liberalization: The East India Company Charter Act of 1813〔题名译释：贸易自由化的政治经济学：1813 年《东印度公司特许状法》〕,” *The Economic History Review* 43, 3 (1990): 404–19; Joshua Ehrlich, “The Crisis of Liberal Reform in India: Public Opinion, Pyrotechnics, and the Charter Act of 1833〔题名译释：印度自由主义改革的危机：公共舆论、烟火与 1833 年《特许状法》〕,” *Modern Asian Studies* 52, 6 (2018): 2013–55.

107. 英国上议院，《汉萨德议会辩论记录》，第 3 辑，第 59 卷（1841 年 10 月 5 日），第 1115—1128 栏。

108. 转引自 *Slavery and the Slave Trade in British India〔题名译释：英属印度的奴隶制与奴隶贸易〕*, 49.

[p. 21] 因此，早期殖民国家是一股反动力量；但当时，此类力量不仅在印度，也在更广阔的帝国世界以及欧洲和英国国内占据上风。治理印度的大多数官员——甚至包括麦考莱这样的“辉格党人”，他们认为必须诉诸正在兴起的中产阶级及“民主力量”的利益——在政治上都主张“秩序”与自上而下的改革。[109]他们反对各地的民主工人运动，包括英国的宪章运动。因此，埃伦伯勒勋爵把选举改革运动称为“一种骇人的民主”，而在 1843 年担任首相的罗伯特 • 皮尔（任期 1841—1846 年）则称其为“一种鲁莽的民主”。[110] 实际发生的改革，巩固了土地精英在议会中的影响，并通过把部分中产阶级纳入政治制度，使他们与无产阶级工人分离。[111]在这一背景下，废奴如同一种“道德资本”，供大英帝国为奴隶制的“罪孽”寻求赎罪；许多人相信，正是这一罪孽导致了美洲殖民地的丧失。[112]反奴隶制之所以吸引政治精英，是因为它使议会能够在压制国内外自由的同时，继续高举自由旗帜。[113]

109. Peter J. Gurney, “The Democratic Idiom: Languages of Democracy in the Chartist Movement〔题名译释：民主的表达方式：宪章运动中的民主语言〕,” *The Journal of Modern History* 86, 3 (2014): 566–602.

110. 转引自同上, 571.

111. Hilton, *A Mad, Bad, and Dangerous People?〔题名译释：一个疯狂、邪恶而危险的民族?〕*, 420–36, 612–21.

112. Christopher L. Brown, *Moral Capital: Foundations of British Abolitionism〔题名译释：道德资本：英国废奴主义的基础〕* (University of North Carolina Press, 2006).

113. Linda Colley, *Britons: Forging the Nation, 1707–1837〔题名译释：英国人：民族的铸造，1707—1837〕* (Yale University Press, 1992), 350–60.

the British Parliament completely. It also espoused an authoritarian vision of “reform” led by Thomas Macaulay, who chaired the Law Commission that produced the Report on Slavery. Thus, when Lord Brougham raised the issue of Indian slavery in Parliament on 5 October 1841, Lord Ellenborough responded that “Parliament had wisely directed that the initiation in legislation on this subject should be left with the Governor-General and council.” [107] Indeed, Ellenborough, who oversaw the passing of Act V as Governor-General of India between February 1842 and June 1844, had denounced the clause in the 1833 Act regarding abolition as “useless and unnecessary.” It would, he thought, “excite the indignation of the landed proprietors” and “shake the confidence and the allegiance of the native officers.” [108]

106. Anthony Webster, “The Political Economy of Trade Liberalization: The East India Company Charter Act of 1813,” *The Economic History Review* 43, 3 (1990): 404–19; Joshua Ehrlich, “The Crisis of Liberal Reform in India: Public Opinion, Pyrotechnics, and the Charter Act of 1833,” *Modern Asian Studies* 52, 6 (2018): 2013–55.

107. House of Lords, *Hansard*, 3rd ser., vol. 59 (5 October 1841), cols. 1115–28.

108. Quoted in *Slavery and the Slave Trade in British India*, 49.

[p. 21] The early colonial state, therefore, was a force of reaction, but such forces were ascendant at the time not only in India but throughout the wider imperial world *and* within Europe and Britain. Most officials who governed India—even “Whigs” such as Macaulay who considered it necessary to appeal to the interests of the rising middle classes and “the democracy”—were political proponents of “order” and reform from above.[109] They opposed democratic, working-class movements everywhere including Chartism in Britain. Thus, Lord Ellenborough called the movement for electoral reform “a monstrous democracy,” and Robert Peel, who was Prime Minister (1841 – 1846) in 1843, called it “a reckless democracy.” [110] The reform that did occur secured the influence of the landed elite in Parliament and separated a section of the middle classes from proletarian workers by including the former within the political system.[111] Abolition, in this context, functioned like “moral capital” for a British Empire seeking atonement for the “sin” of slavery, which had led, many believed, to the loss of the American colonies.[112] Antislavery appealed to political elites because it enabled Parliament to keep flying the flag of liberty at a time when it was clamping down on liberties both at home and abroad.[113]

109. Peter J. Gurney, “The Democratic Idiom: Languages of Democracy in the Chartist Movement,” *The Journal of Modern History* 86, 3 (2014): 566–602.

110. Quoted in ibid., 571.

111. Hilton, *A Mad, Bad, and Dangerous People?*, 420–36, 612–21.

112. Christopher L. Brown, *Moral Capital: Foundations of British Abolitionism* (University of North Carolina Press, 2006).

[p. 21] 如此将殖民档案历史化，我们便能以辩证方式把握南亚废奴的矛盾。在由种姓与奴隶制塑造的农业社会中，形式自由与人身自由确有意义。因此，达利特研究学者有关“殖民”自由主义和现代性对达利特有用的主张，在历史上是成立的。在孟加拉，从 1860 年代一直到二十世纪相当长的一段时期，劳动构成财产的洛克式主张塑造着农业政治。[114]这类主张已经以萌芽形式存在于东部边疆迈门辛地区的 *Paglai Dhum* 农民起义（1825—1833 年）中。在那里，Garo、Hajong 和 Hadi 等山地部落，正作为*劳动*种姓被纳入定居农业秩序，他们抵制税额的增加。他们声称，既然森林是通过他们（或其祖先）的劳动开垦的，土地也是因此才结出果实，那么，由该地区定居扩展所带来的利润增量和更高地租，就应归他们所有，而非归地主或国家所有。[115]事实上，最先把土地、劳动与财产联系起来的，是 Faraizism 的倡导者；这是一场伊斯兰改革运动，1820 年代在孟加拉东部的织工与耕作者中兴起并获得影响。[116]他们的口号——*langal jar, jami tar*，即土地属于耕作它的犁的主人——在整个二十世纪激励着孟加拉由共产党领导的农业运动。

114. Sartori, *Liberalism in Empire〔题名译释：帝国内的自由主义〕*.

115. Bhadra, *Iman O Nishan〔题名译释：信仰与旗帜〕*, 20–164.

116. Sartori, *Liberalism in Empire〔题名译释：帝国内的自由主义〕*, 111.

[p. 22] 农民主张，不论种姓身份如何，*所有*劳动都应被视为同等地构成财产，由此对种姓制度提出深刻批判：在这一制度中，不同类别的人被理解为从事性质不同的劳动，而劳动最多的人始终没有财产。然而，这类主张只能由佃农提出，不能由被视为财产的奴隶提出。鉴于法律冲突最频繁地出现在土地有余的东部地区，几乎可以确定，这正是奴隶希望主张对自身身体与劳动拥有财产权的原因之一。因此，南亚废奴的意义，不能被化约为殖民治理与帝国的偶然需要。[117]

117. 关于南亚自由主义与帝国之间共谋关系的最全面论述是 Uday Singh Mehta, *Liberalism and Empire: A Study of Nineteenth-Century British Political Thought〔题名译释：自由主义与帝国：十九世纪英国政治思想研究〕* (University of Chicago Press, 1999). 一种不同观点突出了宗主国政治在塑造政治思想方面的作用，参见 Javed Majeed, *Ungoverned Imaginings: James Mill’s ‘The History of British India’ and Orientalism〔题名译释：不受管束的想象：詹姆斯 • 穆勒的《英属印度史》与东方主义〕* (Clarendon Press, 1992).

[p. 22] 尽管如此，第五号法令，以及更广义上的南亚自由主义，在一个反革命的历史时刻充当着帝国的工具；这一时刻暴露了资本主义新出现的矛盾。大规模

113. Linda Colley, *Britons: Forging the Nation, 1707–1837* (Yale University Press, 1992), 350–60.

[p. 21] By thus historicizing the colonial archive, we can grasp the contradictions of abolition in South Asia in a dialectical manner. In an agrarian society shaped by caste and slavery, formal freedom and personal liberty mattered. Thus, the claim by Dalit studies scholars about the utility of “colonial” liberalism and modernity for Dalits is historically valid. In Bengal, Lockean claims about the constitution of property by labor shaped agrarian politics from the 1860s onward, well into the twentieth century.[114] Such claims were already present in embryonic form in the *Paglai Dhum* peasant rebellion (1825–1833) in the eastern frontier district of Mymensingh. Here, hill tribes such as the Garos, the Hajongs, and the Hadis, who were being incorporated into a settled agrarian order as *laboring* castes, resisted increased revenue assessment. They claimed that since it was through their labor (or of their forefathers) that forests had been reclaimed and the land made to bear fruit, the incremental profit and higher rent that resulted from the increased settlement in the region should accrue to them and not to the landlords or the state.[115] Indeed, the connection between land, labor, and property was first made by the proponents of Faraizism, an Islamic reformist movement that emerged to prominence among the weavers and cultivators of eastern Bengal in the 1820s.[116] Their slogan—*langal jar, jami tar*, that is, the land belongs to the owner of the plough that tills it—inspired communist-led agrarian movements in Bengal throughout the twentieth century.

114. Sartori, *Liberalism in Empire.*

115. Bhadra, *Iman O Nishan*, 20–164.

116. Sartori, *Liberalism in Empire*, 111.

[p. 22] By claiming that *all* labor irrespective of caste status should be seen as constituting property equally, peasants articulated a profound critique of caste as a regime where different categories of persons were understood to be engaged in qualitatively distinct forms of labor, and those who labored the most were perpetually propertyless. Such claims, though, could only be made by tenants and not by slaves treated as property. Given that legal conflicts recurred most frequently in the eastern districts with surplus land, there can be little doubt that this was one of the reasons why slaves wanted to assert a property right over their own bodies and labor. The relevance of abolition in South Asia, therefore, cannot be reduced to the contingent requirements of colonial governance and empire.[117]

117. The most comprehensive statement of the complicity between liberalism and empire in South Asia is Uday Singh Mehta, *Liberalism and Empire: A Study of Nineteenth-Century British Political Thought* (University of Chicago Press, 1999). For a different view that foregrounds the role of metropolitan politics in shaping political thought, see Javed Majeed, *Ungoverned Imaginings: James Mill’s ‘The History of British India’ and Orientalism* (Clarendon Press, 1992).

[p. 22] Nevertheless, Act V, and liberalism in South Asia more broadly, functioned as tools of empire in a historical moment of counter-revolution that laid bare the

无产阶级化，使大众民主与社会主义改造问题在欧洲凸显；这意味着，正如马克思所坚持的，经典的资产阶级革命已不再可能。可能存在的，只有保卫既成财产的反革命，或者反对资本主义秩序的社会共和主义革命。[118]

118. Marx,“The Bourgeoisie and the Counter-Revolution I–IV〔题名译释：资产阶级和反革命，第一至四篇〕,”210–12.

[p. 22] 这一点揭示了南亚废奴主义者的局限：他们接受了种姓与奴隶制之间的人为区分。到十八世纪末，确保人们不平等地获取财产与权力的实践，已经在无产种姓和有产种姓之间造成*事实上的*分离，为特别具有资本主义性质的劳动关系的出现提供了基础。这可以从以下事实看出：十九世纪初，印度大部分地区都存在一个流动的农村无产阶级；工业化开始时，所需劳动力主要来自这个由最低种姓组成的流动无产阶级。[119]因此，某些学者认为，印度缺少经典的原始积累，是该地区资本主义具有独特性质的原因之一；他们只说对了一部分，因为他们忽视了种姓的漫长历史，也忽视了种姓被纳入资本主义并在其中重新构成的过程。[120]洛克式财产主张难以应对这些复杂情况；这解释了为什么到 1910 年代，此类论证能够起到维护现状——即依种姓区别分配财产——的作用。[121]

119. Kumar,“Caste and Landlessness in South India〔题名译释：南印度的种姓与无地状态〕”; Ranajit Dasgupta,“Factory Labor in Eastern India: Sources of Supply, 1855–1946; Some Preliminary Findings〔题名译释：东印度的工厂劳动：供给来源，1855—1946；若干初步发现〕,”*The Indian Economic and Social History Review* 13, 3 (1976): 277–329; Ian J. Kerr, *Building the Railways of the Raj, 1850–1900〔题名译释：修建英属印度的铁路，1850—1900〕* (Oxford University Press, 1995), 92.

120. 参见 Kalyan Sanyal, *Rethinking Capitalist Development: Primitive Accumulation, Governmentality, and Post-Colonial Capitalism〔题名译释：重新思考资本主义发展：原始积累、治理术与后殖民资本主义〕* (Routledge, 2007). 另参 David Mosse,“The Modernity of Caste and the Market Economy〔题名译释：种姓的现代性与市场经济〕,”*Modern Asian Studies* 54, 4 (2020): 1225–71.

121. Rao, *The Caste Question〔题名译释：种姓问题〕*, 第 2 章.

[p. 23] 在美国南部的重建时期，虽然最终未能实现，但至少曾有人为昔日被奴役者提出“四十英亩土地和一头骡子”的口号。[122]在印度，要形成任何近似公平的起点，同样需要激进的措施；然而，榨取性的殖民国家所支持的财产反革命更加强大。正是这些具体情境与政治因素，解释了南亚自由与废奴的失败和局限，而不是殖民国家无法理解“从奴隶制到亲属关系的连续谱”，也不是它据称试图偷偷引入“欧洲的自由概念和‘占有性个人主义’”。[123]

122. Du Bois, *Black Reconstruction〔题名译释：黑人的重建〕*, 182–236, 580–636.

123. Chatterjee, *Gender, Slavery, and Law in Colonial India〔题名译释：殖民印度的性别、奴隶制与法律〕*; Chatterjee,“Renewed and Connected Histories: Slavery and the Historiography

emergent contradictions of capitalism. Massive proletarianization had brought the question of mass democracy and socialist transformation to the fore in Europe, which meant, as Marx insisted, that classical bourgeois revolutions were no longer feasible. There could only be counter-revolutions defending already constituted property, or social-republican revolutions against the capitalist order.[118]

118. Marx,“The Bourgeoisie and the Counter-Revolution I–IV,”210–12.

[p. 22] This point brings to light the limits of abolitionists in South Asia who conceded the artificial distinction between caste and slavery. By the late eighteenth century, the practices that ensured differential access to property and power had created a *de facto* separation between propertyless and propertied castes, which provided the grounds for the emergence of specifically capitalist labor relations. This can be discerned from the fact that in the early nineteenth century, a floating, rural proletariat existed in most parts of India, and, when industrialization began, the necessary labor was drawn primarily from this floating proletariat consisting of the lowest castes.[119] Therefore, scholars who argue that the lack of classic primitive accumulation in India is one reason for the distinctive character of capitalism in the region are only partly correct, because they ignore the long-running history of caste and the incorporation and reconstitution of caste within capitalism.[120] Lockean claims to property were ill-equipped to respond to these complexities, which explains why such arguments could function as a defense of the status quo—that is, a caste-differentiated distribution of property—by the 1910s.[121]

119. Kumar,“Caste and Landlessness in South India”; Ranajit Dasgupta,“Factory Labor in Eastern India: Sources of Supply, 1855–1946; Some Preliminary Findings,”*The Indian Economic and Social History Review* 13, 3 (1976): 277–329; Ian J. Kerr, *Building the Railways of the Raj, 1850–1900* (Oxford University Press, 1995), 92.

120. See Kalyan Sanyal, *Rethinking Capitalist Development: Primitive Accumulation, Governmentality, and Post-Colonial Capitalism* (Routledge, 2007). Cf. David Mosse,“The Modernity of Caste and the Market Economy,”*Modern Asian Studies* 54, 4 (2020): 1225–71.

121. Rao, *The Caste Question*, chapter 2.

[p. 23] Though ultimately unsuccessful, the slogan of“forty acres and a mule”to the formerly enslaved was at least raised in the era of Reconstruction in the southern United States.[122] Something equally radical would have been necessary in India to resemble anything like a level playing field, but the counter-revolution of property, backed by an extractive colonial state, was even stronger. These contextual and political factors explain the failures and limits of liberty and abolition in South Asia, not the inability of the colonial state to understand the“slavery-to-kinship continuum,”or a purported attempt to smuggle in“European concepts of liberty and‘possessive individualism.’”[123]

122. Du Bois, *Black Reconstruction*, 182–236, 580–636.

123. Chatterjee, *Gender, Slavery, and Law in Colonial India*;

of South Asia〔题名译释：更新且关联的历史：奴隶制与南亚史学〕,” in *Slavery and South Asian History〔题名译释：奴隶制与南亚历史〕*, 17–43, 33. Chatterjee 的分析完全排除了农业奴役，仅关注精英家庭中的家内奴隶。她关于奴隶制—亲属关系连续谱的论证，建立在不加批判地接受 Igor Kopytoff 与 Suzanne Miers 对非洲奴隶制的“吸纳主义分析”之上。关于这一方法的回顾及有说服力的批评，参见 Frederick Cooper,“The Problem of Slavery in African Studies〔题名译释：非洲研究中的奴隶制问题〕,” *The Journal of African History* 20, 1 (1979): 103–125.

Chatterjee,“Renewed and Connected Histories: Slavery and the Historiography of South Asia,” in *Slavery and South Asian History*, 17–43, 33. Chatterjee leaves out agrarian servitude entirely from her analysis and focuses solely on domestic slaves of elite households. Her argument about a slavery-kinship continuum is based on an uncritical acceptance of the“absorptionist analysis” of African slavery by Igor Kopytoff and Suzanne Miers. For a review of this approach and a persuasive critique, see Frederick Cooper,“The Problem of Slavery in African Studies,” *The Journal of African History* 20, 1 (1979): 103–125.

结论 / Conclusion

[p. 23] 当代有关印度洋奴隶制的文献，回应了本文提出的许多主题。学者们表明，工资与贷款，以及它们体现的形式自由，并非无关紧要。在开普殖民地，人们用工资购买解放身份；印度洋地区的自由，也往往意味着为工资而劳动。[124]“逃亡”代表着“斗争”；与大西洋相比，缺少大规模奴隶起义，并不意味着缺少抵抗。[125]反抗榨取性的帝国和根深蒂固的本土权力结构并不容易；我们在档案中发现的任何抵抗，都需要历史解释。

124. Kate Ekama,“Bound to be Free? Manumission in Cape Town, 1825–1834〔题名译释：注定自由？开普敦的奴隶解放，1825—1834〕,” *Slavery and Abolition* 46, 2 (2025): 441–62; Chakraborty,“Slave Trading and Slave Resistance in the Indian Ocean World〔题名译释：印度洋世界的奴隶贸易与奴隶抵抗〕.”

125. Rediker et al., *A Global History of Runaways〔题名译释：逃亡者全球史〕*; Matthias van Rossum and Jeannette Kamp, eds., *Desertion in the Early Modern World: A Comparative History〔题名译释：早期现代世界的逃离：一部比较史〕* (Bloomsbury Academic, 2016).

[p. 24] 然而，有关奴隶制全球史的新研究，并未促成书写反奴隶制全球史的尝试。如今，以大西洋为中心的辩论很少被援引，那场辩论中主要参与者的辩证方法也被抛弃，取而代之的是一种对资本主义纯然否定的看法：资本主义*必然*具有帝国主义与种族主义性质。这一倾向的另一面，是把“抵抗”仅仅理解为对榨取性的欧洲帝国的挑战，从而留下了不加批判地肯定前殖民南亚社会的可能。

[p. 24] 相较之下，本文认为，将反奴隶制辩论的洞见与有关印度种姓的丰富文献结合起来，有两方面益处。第一，它使印度社会内部的矛盾鲜明呈现，从而表明，在这一情境中，废奴以及雇佣劳动的形式自由如何、又为何重要。被指称为“奴隶”的人，对被完全占有的法律身份或*法定*身份表达不满；他们的本土主人则主张，这些权利在孟加拉社会*事实上*存在。“奴隶”坚持说，他们出售的是劳动*能力*，以换取工资与贷款，而不是自己的人格。这类主张由对人身自由的渴望所推动：他们认识到其中的*利害关系*，因而渴望*成为*“奴隶”以外的某种人。

[p. 23] The contemporary literature on Indian Ocean slavery speaks to many themes broached in this essay. Scholars have shown that wages and loans, and the formal freedom they embodied, were not unimportant. Wages were used to purchase manumission in the Cape colonies, and freedom in the Indian Ocean often meant working for a wage.[124] “Flight” represented “fight,” and the lack of large-scale slave rebellions compared to the Atlantic does not imply a lack of resistance.[125] Rebellion against extractive empires and deeply rooted indigenous power structures was not easy, and any resistance we find in the archive requires a historical explanation.

124. Kate Ekama,“Bound to be Free? Manumission in Cape Town, 1825–1834,” *Slavery and Abolition* 46, 2 (2025): 441–62; Chakraborty,“Slave Trading and Slave Resistance in the Indian Ocean World.”

125. Rediker et al., *A Global History of Runaways*; Matthias van Rossum and Jeannette Kamp, eds., *Desertion in the Early Modern World: A Comparative History* (Bloomsbury Academic, 2016).

[p. 24] New research on global histories of slavery, however, has not inspired attempts to write global histories of antislavery. The Atlantic-centered debate is rarely invoked today, and the dialectical approach of major contributors to that debate has been jettisoned in favor of a purely negative view of capitalism as *necessarily* imperial and racist. The obverse of this tendency is the conceptualization of“resistance” as challenges only to extractive European empires, which leaves open the possibility of an uncritical affirmation of pre-colonial South Asian societies.

[p. 24] By contrast, this essay has argued that combining insights from the antislavery debate with the extensive literature on caste in India offers two benefits. One, it brings into sharp relief contradictions within Indian society, and thereby shows how and why abolition and the formal freedom of wage-labor mattered in that context. Those alleged to be“slaves” expressed dissatisfaction with the legal or *de jure* status of complete ownership, whereas their indigenous masters argued that such rights existed *de facto* in Bengali society. The“slaves” insisted that they had sold their *capacity* to labor in return for wages and loans, and not their personhood. Such claims were motivated by a desire for personal liberty: a desire to *become* something other than a“slave,” based on a recognition of the *stakes* involved in it.

[p. 24] 殖民国家，以及全球资本主义反革命的背景，扼杀了这些愿望。如此将自由的潜能与失败一并历史化，我们就能以扎实的方式思考比较，而不从有关“种姓”与“种族”等同、或资本主义、奴隶制与种族主义之间存在*必然*联系的*先验*假设出发。[126]密切关注南亚种姓、奴隶制与社会愿望的具体性，并依据档案论证它们如何、何时开始受到资本主义历史的中介，就可以避免把区域历史塞入又一个以大西洋为中心的概念，例如“种族资本主义”。这里关涉的是，更深入地理解全球资本主义如何不均衡地把前资本主义社会形式纳入自身，并在时间推移中重新构成它们。

126. Sanjay Subrahmanyam 在近期一篇评论文章中指出，仓促的比较可能抹平种姓与种族主义各自的历史特殊性。我认真对待 Subrahmanyam 的担忧，但不赞同他暗示的比较或许不可能这一观点。参见 Sanjay Subrahmanyam, “Revisiting ‘Racial Capitalism,’〔题名译释：重审“种族资本主义”〕” *European Journal of Sociology* 64, 2 (2023): 173–81. 另参上文注 24。

[p. 24] The colonial state and the global, capitalist context of counter-revolution smothered these aspirations. By thus historicizing both the potentials and failures of liberty, we can think about comparison in a grounded manner, one that does not proceed from *a priori* assumptions either about the equivalence of “caste” and “race,” or about a *necessary* connection between capitalism, slavery, and racism.[126] Close attention to the specificities of caste, slavery, and social aspirations within South Asia, and archivally grounded arguments about how and when they came to be mediated by the history of capitalism, can obviate the need to fit regional histories into yet another Atlantic-centric notion such as “racial capitalism.” At stake is a deeper understanding of how global capitalism has unevenly incorporated pre-capitalist social forms within it and reconstituted them over time.

126. In a recent review essay, Sanjay Subrahmanyam has argued that hasty comparisons threaten to flatten out the historical specificities of both caste and racism. I take Subrahmanyam’s concerns seriously but disagree with his implicit suggestion that comparison may be impossible. See Sanjay Subrahmanyam, “Revisiting ‘Racial Capitalism,’” *European Journal of Sociology* 64, 2 (2023): 173–81. Cf. n. 24 above.

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编者说明

正文以奴隶制（slavery）、反奴隶制（antislavery）、废奴（abolition）、种姓（caste）、形式自由（formal freedom）、人身自由（personal liberty）为基本译法。caste 与 slavery 是作者有意区分而又联系的范畴，不互相替代。原文的法律身份与事实状态、劳动能力与人格等区分均予保留。

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原文介绍 Paglai Dhum 起义时有 1826—1833 年和 1825—1833 年两种起讫写法；注 40 所引论文题名另为 1824—1833 年。本版分别保留，未擅自统一。原文结论说有两方面益处，但只明列第一项，后文按原有段落继续，不自行补出第二项标题。

原注 28 引用 Sen 的 The Decline of the Caste Question，但本篇未给该书完整书目信息；原注中的省略及原文疑点均保留，不将其表述为已独立核验全部引文。法律案件中的罗马字姓名、金额、日期及原有引号保留，不自行推定现代拼写。